Stone Garden Holdings, LP

Name of Purchaser

ENCAP ENERGY CAPITAL FUND XII

Limited Partnership Interests

Subscription Booklet

The limited partnership interests (the "***Interests***") of EnCap Energy Capital Fund XII, L.P. ("***Main Fund***"); EnCap Energy Capital Fund XII-B, L.P. ("***Feeder B***"); EnCap Energy Capital Fund XII-C, L.P.; ("***Feeder C***"); and/or any other partnership that may be created by EnCap Investments L.P. to invest alongside Main Fund, Feeder B and Feeder C (each a "***Partnership***" and, collectively, the "***Fund***") are being offered to qualified investors pursuant to the confidential private placement memorandum of EnCap Energy Capital Fund XII, together with any supplement thereto.

The Interests have not been registered under the Securities Act of 1933, as amended (the "***Securities Act***"), the securities laws of any state or the securities laws of any other jurisdiction, nor is such registration contemplated. The Interests will be offered and sold under an exemption from registration under the Securities Act, and other exemptions of similar import in the laws of the states and other jurisdictions where the offering will be made. None of the Partnerships will be registered as an "Investment Company" under the U.S. Investment Company Act of 1940, as amended.

The distribution of this Subscription Booklet and the offer and sale of the Interests in certain jurisdictions may be restricted by law. This Subscription Booklet does not constitute an offer to sell or the solicitation of an offer to buy any Interests in any state or other jurisdiction where, or to or from any person to or from whom, such offer or solicitation is unlawful or not authorized. The Interests are offered subject to the right of the general partner of the Fund to reject any subscription in whole or in part.

ENCAP ENERGY CAPITAL FUND XII

Instructions to Subscription Booklet:

To subscribe, please:

1. Review the Subscription Agreement in its entirety;

2. Complete and execute the Management Fee Election and the Limited Partner Signature Page to the Subscription Agreement, the Management Fee Election, the Purchaser Questionnaire and the Partnership Agreement;

3. Complete the Purchaser Questionnaire, including all annexes attached thereto:

   a. Complete the Purchaser Information Form (Annex A);

   b. Complete the Securities Act Certifications (Annex B);

   c. Complete the Investment Company Act Certifications (Annex C);

   d. Complete the Advisers Act Certifications (Annex D)

   e. Complete the Additional Certifications (Annex E);

   f. Complete the Rule 506(d) Certification (Annex F);

   g. Deliver the Anti-Money Laundering Documentation Requirements (Annex G);

   h. Execute the Incumbency Certificate (Annex H);

   i. Provide Wiring Instructions for Purchaser (Annex I);

   j. Complete the Contact Information Sheet (Annex J);

   k. Complete the Form PF Certification (Annex K);

   l. Complete U.S. Internal Revenue Service ("***IRS***") Form W-9 or the applicable IRS Form W-8 ("***Tax Form***") linked in Annex L and return the completed and signed form with your completed Purchaser Questionnaire;

   m. Complete the Consent Form for Purchaser to Receive a Schedule K-1 Electronically (Annex M);

   n. Read the Privacy Notice (Annex N);

   o. If you are subscribing for an Interest in Feeder C, please complete the appropriate CRS Form (Annex O) (to be provided separately); and

   p. If you are subscribing for an Interest in Feeder C, please complete the Non-U.S. Purchaser Supplement (Annex P) (to be provided separately).

4. Return the fully completed Subscription Agreement, Purchaser Questionnaire and attachments, including your Tax Form, in PDF format to: EnCapXII@velaw.com

If you have any questions concerning the Subscription Agreement, Purchaser Questionnaire or these instructions, please contact any of the representatives of EnCap Investments L.P. or Carson Dimick or Daryne Foote at Vinson & Elkins L.L.P.:

Carson Dimick
Phone: 214-220-7926
Email: cdimick@velaw.com

Daryne Foote
Phone: 214-220-7936
Email: dfoote@velaw.com

SUBSCRIPTION AGREEMENT

EnCap Energy Capital Fund XII

EnCap Equity Fund XII GP, L.P.
9651 Katy Freeway, Suite 600
Houston, Texas 77024

Ladies and Gentlemen:

The undersigned ("***Purchaser***"), intending to be legally bound, hereby irrevocably subscribes to purchase a limited partnership interest (the "***Interest***") in the partnership listed on the General Partner Acceptance Page hereto (or Alternative Investment Vehicle thereof) (the "***Partnership***") in the aggregate amount set forth opposite the signature of Purchaser below (the "***Commitment***"), which amount shall be payable as provided in the Partnership Agreement (as defined below). This subscription agreement (this "***Subscription Agreement***") is submitted to EnCap Equity Fund XII GP, L.P. (the "***General Partner***") in accordance with and subject to the terms and conditions described in this Subscription Agreement and the Amended and Restated Agreement of Limited Partnership of the Partnership (as further amended or amended and restated, the "***Partnership Agreement***"). Where context so requires, in this Subscription Agreement, references to (i) the "Partnership Agreement" shall be construed to refer to the agreement of limited partnership or similar agreement of EnCap Energy Capital Fund XII, L.P., as supplemented by any similar agreement of an applicable Feeder Fund or Alterative Investment Vehicle and (ii) the "Interest" shall be construed to refer to a limited partner interest or other equity interest in the Partnership. Capitalized terms used but not otherwise defined herein shall have the respective meanings assigned to such terms in the Partnership Agreement.

1. **Acceptance of Subscription.** It is understood and agreed that the General Partner, on behalf of the Partnership, shall have the right to accept or reject this subscription, in whole or in part, and that the same shall be deemed to be so accepted only when it is signed by the General Partner. Once accepted by the General Partner, Purchaser's subscription shall be irrevocable.

2. **Adoption of Partnership Agreement.** Purchaser has executed and delivered the Limited Partner Signature Page, which is attached hereto and constitutes Purchaser's signature page to this Subscription Agreement, the Purchaser Questionnaire and the Partnership Agreement, and hereby ratifies, adopts, accepts and agrees to be bound by all of the terms and provisions of this Subscription Agreement, the Purchaser Questionnaire and the Partnership Agreement. Upon acceptance of this subscription by the General Partner, the General Partner is authorized to attach the Limited Partner Signature Page to the Purchaser Questionnaire and Partnership Agreement, and Purchaser shall at such time become a Limited Partner under the Partnership Agreement.

3. **Representations, Warranties and Covenants of Purchaser.** Purchaser hereby represents and warrants to and covenants with the Partnership and the General Partner as follows:

(a) Economic Loss and Sophistication. Purchaser is able to bear the economic risks of this investment, and consequently, without limiting the generality of the foregoing, Purchaser is able to hold its Interest for an indefinite period of time and has a sufficient net worth to sustain a loss of all or a portion of its investment in the Interest in the event such loss should occur. Purchaser's Commitment, together with Purchaser's other investments that are not readily marketable, is not disproportionate to Purchaser's net worth. Purchaser is a sophisticated investor and has such knowledge and experience in financial and business matters that it is capable of evaluating the risks and merits of this investment.

(b) Investment Intent. Purchaser understands and acknowledges that the Interests have not been, and will not be, registered under the Securities Act of 1933, as amended (the "***Securities Act***"), and that the sale of the Interest is being made in reliance on Section 4(a)(2) and Regulation D under the Securities Act, or under other applicable exemptions from registration thereunder. Purchaser is acquiring the Interest for its own account, for investment and not with view to the distribution, resale, subdivision, or fractionalization thereof, and Purchaser has no present plans to enter into any contract, undertaking, agreement, or arrangement for any such distribution, resale, subdivision, or fractionalization.

(c) General Solicitation and Advertising. Purchaser is not subscribing for the Interest as a result of (i) any advertisement, article, notice or other communication published in any newspaper, magazine or similar medium (including any internet site that is not password protected) or broadcast over radio, television or the internet or (ii) any seminar or meeting whose attendees have been invited by any general solicitation or general advertising. The Purchaser is not acquiring the Interest in connection with any invitation to the public of the Cayman Islands to subscribe for Interests.

(d) No Registration of Interest; Conditions to Assignment of Interest. Purchaser is aware that it must bear the economic risk of its investment in the Interest for an indefinite period of time because (i) the Interest has not been registered under the Securities Act, or under the securities laws of any state of the United States, and therefore cannot be sold unless it is subsequently registered under the Securities Act and any applicable state securities laws or unless an exemption from such registration is available and, further, that only the Partnership can take action to register the Interest, and the Partnership is under no obligation and does not intend to attempt to do so, and (ii) the Partnership Agreement provides that a Limited Partner may sell, assign, dispose of or otherwise transfer, directly or indirectly, including by means of a pledge, grant of a security interest, mortgage, hypothecation or other encumbrance (any of such actions, a "***Disposition***") its Interest only upon the consent of the General Partner and the satisfaction of certain conditions set forth in the Partnership Agreement. Purchaser also recognizes that no U.S. federal or state agency has evaluated the Interest to date or made any finding or determination as to the fairness of an investment in the Interest.

(e) Prior Relationship; Information. Purchaser has a pre-existing and substantive personal or business relationship with the General Partner and/or any of its principals, agents or Affiliates. Purchaser (i) has received, read carefully and understands the information supplied by the General Partner with respect to a prospective investment in the Partnership, including the Confidential Private Placement Memorandum, dated as of February 28, 2023, regarding the Partnership, as amended or supplemented on or prior to the date hereof (the "***Memorandum***"), the Partnership Agreement, this Subscription Agreement and any other written materials furnished or made available to Purchaser by or on behalf of the Partnership and related to the purchase of the Interest, on or prior to the date hereof, (ii) has consulted with and obtained the advice of its own attorneys, accountants, tax consultants and investment advisers with respect to the investment in the Interest contemplated hereby, its suitability for Purchaser and the risks and merits of an investment in the Interest, including the risks set forth under the caption "Risk Factors" in the Memorandum, (iii) has had the opportunity to obtain any additional information necessary to verify the accuracy of the information contained in such documents and to evaluate the merits and income tax consequences of the investment, (iv) has been given the opportunity to meet with officials of the General Partner and its Affiliates and to have said officials answer any questions regarding the terms and conditions of this particular investment, and all such questions have been answered to its full satisfaction and (v) believes that an investment in the Interest is suitable and appropriate for Purchaser. In addition, Purchaser has not relied upon any representations made by, or other information (whether oral or written) furnished by or on behalf of, the Partnership, the General Partner, or any director, officer, employee, agent or Affiliate of such Persons, other than as set forth in the Memorandum, the Partnership Agreement and this Subscription Agreement. Purchaser understands that actual results may not correspond to the assumptions set forth in the Memorandum regarding the Partnership.

(f) Restrictions; No Registration; Legends. Purchaser understands and agrees that, in addition to other limitations contained in the Partnership Agreement, the following restrictions and limitations imposed by Rule 502 of Regulation D under the Securities Act and by applicable state or foreign securities laws are applicable to its purchase and any Disposition of its Interest, and, as a result, the marketability of the Interests will be severely limited:

(i) Purchaser agrees that the Interest shall not be Disposed of unless they are registered under the Securities Act and applicable state or foreign securities laws or unless an exemption from such registration is available.

(ii) A legend in substantially the following form has been placed on the Partnership Agreement and will be placed on any certificate(s) or other document(s) evidencing the Interest:

THE LIMITED PARTNERSHIP INTERESTS IN THE PARTNERSHIP HAVE NOT BEEN REGISTERED UNDER THE SECURITIES ACT OF 1933, AS AMENDED, OR ANY STATE OR FOREIGN SECURITIES LAWS, OR APPROVED OR DISAPPROVED BY THE SECURITIES AND EXCHANGE COMMISSION OR BY ANY STATE OR FOREIGN AUTHORITY. SUCH INTERESTS MAY NOT BE SOLD, ASSIGNED, TRANSFERRED, PLEDGED OR OTHERWISE DISPOSED OF UNLESS SUCH INTERESTS ARE FIRST REGISTERED PURSUANT TO ALL SUCH APPLICABLE LAWS OR UNLESS COUNSEL SATISFACTORY TO ENCAP EQUITY FUND XII GP, L.P. SHALL HAVE RENDERED AN OPINION SATISFACTORY TO ENCAP EQUITY FUND

XII GP, L.P. THAT SUCH REGISTRATION IS NOT REQUIRED. THE SALE, ASSIGNMENT, TRANSFER, PLEDGE OR OTHER DISPOSITION OF SUCH INTERESTS IS ALSO RESTRICTED BY THE PARTNERSHIP AGREEMENT.

(g) Rule 144; No Markets for the Interest. Purchaser acknowledges and understands that Rule 144 promulgated under the Securities Act is not applicable or contemplated to become applicable to the resale of the Interest and further acknowledges that neither the Partnership nor the General Partner will be obligated to make the filings and reports or make available publicly the information that is a condition to the availability of Rule 144, or take any other action in furtherance of making any other exemption available. Purchaser acknowledges and understands that there is no public or other market for the Interest, and it is not anticipated that such a market will ever develop.

(h) U.S. State & Non-U.S. Securities Laws; Other Relevant Laws. Purchaser represents that it meets any additional or different suitability standards imposed by the securities and other laws of the jurisdiction of Purchaser's principal place of business, residence or domicile applicable to or required in connection with an investment in the Interest.

(i) Purchaser Objectives and Awareness.

(i) Purchaser understands and acknowledges that (A) the Partnership has no prior financial or operating history, (B) investment returns, if any, set forth in the Memorandum are not necessarily comparable to or indicative of the returns, if any, that may be achieved on investments made by, or in, the Partnership and (C) there is substantial risk of loss of investment incidental to the purchase of the Interest.

(ii) The purchase of the Interest by Purchaser is consistent with the general investment objectives of Purchaser. Purchaser's investment in the Interest and other investments that are not readily marketable is not disproportionate to Purchaser's net worth. Purchaser has substantial means of providing for Purchaser's current needs and contingencies and its obligations under this Subscription Agreement and the Partnership Agreement, has no need for liquidity in connection with its investment in the Interest and at the present time could afford a complete loss of such investment.

(iii) Purchaser understands and acknowledges that an investment in the Interest involves certain risks, including without limitation substantial risk of loss of investment, lack of liquidity and substantial restrictions on the transferability of the Interest and, except as explicitly provided for by law in certain jurisdictions outside the United States and the Cayman Islands, Purchaser is not entitled to cancel, terminate or revoke this Subscription Agreement or any of the rights, powers or obligations conferred herein.

(iv) Purchaser understand and acknowledges:

(A) the General Partner, EnCap Investments L.P. and their respective Affiliates will receive substantial compensation in connection with the management and operations of the Partnership;

(B) portfolio transactions for the Partnership may be executed through an Affiliate of the General Partner or other intermediaries with whom the General Partner conducts non-Partnership business;

(C) no independent counsel has been engaged by the Partnership or the General Partner to represent the Limited Partners; and

(D) the Partnership may from time to time incur borrowings as further set forth in the Partnership Agreement.

(j) Due Formation; Good Standing; Authorization.

(i) If Purchaser is a corporation, trust, partnership, limited liability company or other organization, Purchaser is duly and validly formed, validly existing and in good standing under the laws of the jurisdiction in which it is organized and has all requisite power and authority under its organizational documents and such laws to execute and deliver this Subscription Agreement, the Purchaser Questionnaire and the Partnership Agreement and to perform its obligations hereunder and thereunder. The person signing this Subscription Agreement, the Purchaser Questionnaire and the Partnership Agreement on behalf of such entity is duly authorized by such entity to do so.

(ii) If Purchaser is an individual, or if beneficial ownership of Purchaser is held by an individual through a revocable grantor trust or an individual retirement account, Purchaser or Purchaser's beneficial owner has all requisite legal capacity to acquire and hold the Interest and to execute and deliver this Subscription Agreement, the Purchaser Questionnaire and the Partnership Agreement and to perform its obligations hereunder and thereunder. If Purchaser lives in a community property state in the United States, either (A) the source of Purchaser's Commitment will be Purchaser's separate property and Purchaser will hold the Interest as separate property, or (B) Purchaser alone has the authority to bind the community property of his or her marital estate with respect to this Subscription Agreement, the Purchaser Questionnaire and the Partnership Agreement, and all agreements contemplated hereby and thereby.

(iii) Purchaser is authorized to make its capital contributions to the Partnership.

(k) Investment Company Act. Purchaser understands and acknowledges that (i) the Partnership is not registered as, and does not have any obligation or intention to register as, an "investment company" under the Investment Company Act of 1940, as amended (the "***Investment Company Act***"), and (ii) Purchaser will not be afforded the protections provided to investors in registered investment companies under the Investment Company Act. Purchaser represents and warrants that, if it is a private investment company or a non-U.S. investment company exempt from registration under the Investment Company Act pursuant to Section 3(c)(1) or 3(c)(7) thereunder, it is not structured or operated for the purpose or as a means of circumventing the provisions of the Investment Company Act.

(l) Municipal Securities. Purchaser represents and warrants, (i) that for purposes of Section 15B of the Securities Exchange Act of 1934 (including Securities and Exchange Commission Rule 15Ba1-1 et seq.) (the "***Municipal Advisor Rules***"), none of the funds used for investment in the Interest, or that will be contributed with respect to the Interest, constitute or contain (A) "proceeds of municipal securities" (including investment income therefrom and monies pledged or otherwise legally dedicated to serve as collateral or a source or repayment for such securities) or (B) "municipal escrow investments" (as each such term is defined in the Municipal Advisor Rules), and (ii) that the person providing this certification has access to the appropriate information or has direct knowledge of the source of the funds to be invested to enable the representation in clause (i) above, to be made.

(m) Accredited Investor and Qualified Purchaser Status. Purchaser is, as of the date hereof, and will be as of the date of the Closing applicable to Purchaser, an "accredited investor" under the Securities Act (as described in Annex B to the Purchaser Questionnaire) and a "Qualified Purchaser" under the Investment Company Act (as described in Annex C to the Purchaser Questionnaire). Purchaser represents and warrants that one or more of the categories set forth in each of Annex B and Annex C to the Purchaser Questionnaire correctly and in all respects describe Purchaser, and Purchaser has so indicated by marking, or by having its authorized representative mark, on the blank line preceding each category that so describes the status of Purchaser.

(n) Investment Advisers Act Matters. Purchaser, as well as any direct or indirect beneficial owner of Purchaser that would be identified as a "client" under Rule 205-3 under the Investment Advisers Act of 1940, as amended (the "***Investment Advisers Act***"), is a "qualified client" within the meaning of the Investment Advisers Act and the rules and regulations promulgated thereunder. Purchaser agrees that the General Partner and the Partnership may provide in any electronic medium (including via email or website access) any disclosure or document that is required by applicable law to be provided to Purchaser.

(o) ERISA. Except as specifically disclosed by Purchaser in Annex E to the Purchaser Questionnaire, Purchaser is not a Benefit Plan Investor (as defined in Annex E to the Purchaser Questionnaire). If Purchaser is a Benefit Plan Investor, the purchase and holding of the Interest by Purchaser will not result in a prohibited transaction under Section 406 of the Employee Retirement Income Security Act of 1974, as amended ("***ERISA***"), or Section 4975 of the Internal Revenue Code of 1986, as amended (the "***Code***"), for which an exemption is not available. If Purchaser is a Benefit Plan Investor, it acknowledges that Purchaser has evaluated for itself the merits of an investment in the Partnership, and it has not solicited and has not received from the General Partner, its Affiliates, or any director, officer, member, manager, employee or agent of the General Partner or such Affiliate, any evaluation or other investment advice on any basis in respect of the advisability of a subscription for the Interest in light of the plan's assets, cash needs, investment policies or strategy, overall portfolio composition or plan for diversification of assets and it is not relying and has not relied on the General Partner, any of its Affiliates, or any director, officer, member, manager, employee or agent of the General Partner or any such Affiliate, for any such advice. If Purchaser is a Benefit Plan Investor, (i) it acknowledges that neither the General Partner, any of its Affiliates, nor any of their respective directors, officers, members, managers, employees, or agents is a "fiduciary" (within the meaning of ERISA) of Purchaser; (ii) the decision to acquire the Interest was made by a "fiduciary" (within the meaning of ERISA) of Purchaser which is unrelated to the General Partner, any of its Affiliates, or any of their respective directors, officers, members, managers, employees, or agents and which is duly authorized to make such an investment decision on behalf of Purchaser, and (iii) the trustee or other plan fiduciary directing the investment (A) in making the proposed investment, is aware of and has taken into consideration the diversification requirements of Section 404(a)(1)(C) of ERISA and (B) has concluded that the proposed investment in the Partnership is permissible under the documents governing the plan and the fiduciary, is prudent and is consistent with other applicable fiduciary responsibilities under ERISA and the Code. If Purchaser is an individual retirement account or an employee benefit plan not subject to Title I of ERISA, such as a governmental or church plan, the owner of the individual retirement account or other fiduciary directing the investment of the plan has concluded that the proposed investment in the Partnership is permissible under the documents and applicable law governing the account or the plan and the fiduciary, is prudent and is consistent with its other fiduciary responsibilities, if any.

(p) Compliance with Other Instruments and Laws; Valid and Binding Obligation; No Authorization Required. The execution and delivery of, and performance of the terms and obligations of, this Subscription Agreement, the Purchaser Questionnaire and the Partnership Agreement will not cause Purchaser to violate any judgment, order, decree, law, ordinance, rule, regulation, statute, agreement, charter, organizational document or indenture to which Purchaser or Purchaser's property is subject. Assuming due authorization, execution and delivery of this Subscription Agreement by the Partnership, and the Partnership Agreement by the General Partner and the other Limited Partners, this Subscription Agreement is, and at or prior to the Closing the Partnership Agreement will be, a valid and legally binding obligation of Purchaser, enforceable against Purchaser in accordance with their respective terms, except as the enforceability thereof may be limited by bankruptcy, reorganization, moratorium or other similar laws relating to the enforcement of creditors' rights generally and by general principles of equity. No authorization, consent or approval is required to be obtained by Purchaser from any governmental authority or agency or other official body in any relevant jurisdiction in connection with the execution or delivery of this Subscription Agreement, the Partnership Agreement or the Purchaser Questionnaire by Purchaser or the performance by Purchaser of its obligations under this Subscription Agreement, the Partnership Agreement or the Purchaser Questionnaire.

(q) Power of Attorney. Purchaser hereby confirms its grant of the power of attorney in the Partnership Agreement and represents and warrants that the grant of such power of attorney by Purchaser has been given in compliance with the laws of the state or jurisdiction in which this Subscription Agreement was executed and to which Purchaser is subject.

(r) Sanctions Representations.

(i) None of Purchaser, any person controlling or controlled by Purchaser, any person having a beneficial interest in Purchaser or any person for whom Purchaser is acting as agent or nominee in connection with the Interest (such Persons, other than Purchaser, "***Related Persons***") (A) appears on the Specially Designated Nationals and Blocked Persons List of the Office of Foreign Assets Control of the United States Department of the Treasury ("***OFAC***"), (B) is named on a list of prohibited countries, territories, entities, and individuals under (x) the laws or regulations of the United States or (y) the European Union and United Kingdom Regulations (as extended to the Cayman Islands by Statutory Instrument), or (C) is operationally based or domiciled in a country or territory in relation to which current sanctions have been issued by the United States, United Nations, European Union, United Kingdom or Cayman Islands (collectively, "***Sanctions***," and any Person that is either the subject of such Sanctions or majority-owned or directly or indirectly controlled by one or more Persons that are the subject of such Sanctions, a "***Sanctioned Person***"). Further, (x) neither Purchaser nor any Related Persons are or have engaged, or will engage, or are owned or controlled by any party that is or has engaged, or will engage, in activities that could result in being designated a Sanctioned Person or on any list of restricted parties maintained by the U.S. federal government, the European Union, the United Kingdom (as extended to the Cayman Islands by statutory instrument) and/or Cayman Islands legislation and (y) Purchaser otherwise will not engage in any business or other activities that could cause the Partnership to be in violation of applicable anti-money laundering, Sanctions, anti- bribery, anti-terrorist, anti-proliferation financing or anti-boycott laws or regulations.

(ii) (A) No capital commitment, contribution or payment to the Partnership by Purchaser and no distribution to Purchaser shall cause the Partnership or the General Partner to be in violation of any applicable U.S. federal or state or Cayman Islands or other non-U.S. laws or regulations, including anti-money laundering, anti-terrorist, anti-proliferation financing, Sanctions, anti-bribery or anti-boycott laws or regulations, including the Uniting and Strengthening America by Providing Appropriate Tools Required to Intercept and Obstruct Terrorism (USA PATRIOT ACT) Act of 2001, the Foreign Corrupt Practices Act, the Proceeds of Crime Act (As Revised) of the Cayman Islands (the "***Proceeds of Crime Act***"), the Anti-Money Laundering Regulations (As Revised) of the Cayman Islands, the Guidance Notes on the Prevention and Detection of Money Laundering, Terrorist Financing and Proliferation Financing in the Cayman Islands, the Terrorism Act (As Revised) of the Cayman Islands, the Anti-Corruption Act (As Revised) of the Cayman Islands, the Proliferation Financing (Prohibition) Act (As Revised) of the Cayman Islands and the Misuse of Drugs Act (As Revised) of the Cayman Islands (B) all capital contributions or payments to the Partnership by Purchaser will be made through an account located in a jurisdiction that does not appear on the list of boycotting countries published by the U.S. Department of Treasury pursuant to Code §999(a)(3), as in effect at the time of such contribution or payment, and (C) the monies used to fund Purchaser's investment in the Interest are not derived from, invested for the benefit of, or related in any way to, the governments of, or Persons located, organized, or resident in, any country under a U.S. embargo enforced by OFAC, or a Cuban national wherever located.

(iii) Purchaser agrees that in the event of any change in its status or the status of any Related Person with respect to the representations and warranties set forth in this Section 3(r) (regardless of whether attributable to a change in its status or a change in applicable law or regulations), Purchaser shall promptly notify the General Partner of such change.

(iv) Purchaser acknowledges and agrees that should Purchaser and/or any Related Person be, or become at any time during Purchaser's investment in the Partnership, a Sanctioned Person (a "***Sanctioned Persons Event***"), (A) the General Partner or its duly authorized delegate may immediately and without notice to Purchaser cease any further dealings with Purchaser and/or Purchaser's interest in the Partnership until such Person ceases to be a Sanctioned Person or a license is obtained under applicable law to continue such dealings, and (B) no Indemnified Person (as defined below) shall have any liability whatsoever for any liabilities, costs, expenses, damages and/or losses (including any direct, indirect or consequential losses, loss of profit, loss of revenue, loss of reputation and all interest, penalties and legal costs and all other professional costs and expenses) incurred by Purchaser or any Related Person as a result of a Sanctioned Persons Event.

(s) Fund of Funds. If Purchaser is, or is owned by, a fund-of-funds, no class of Purchaser's securities, or securities of such fund-of-funds (or a subsidiary thereof) that owns Purchaser, is listed on any public exchange, and neither Purchaser nor a fund-of-funds (or a subsidiary thereof) that owns Purchaser will seek to list any class of Purchaser's (or its) securities on any public exchange without the prior written consent of the General Partner.

(t) Privacy Notice. If Purchaser is a natural person, he or she acknowledges receipt of the notice regarding privacy of financial information under the U.S. Federal Trade Commission privacy rule, 15 C.F.R. Part 313 (the "***Privacy Rule***"), and agrees that the Interest is a financial product that Purchaser has requested and authorized. In accordance with the Privacy Rule, Purchaser acknowledges and agrees that the Partnership may disclose non-public personal information of Purchaser to the Partnership's accountants, attorneys and other service providers as necessary to effect, administer and enforce the Partnership and the Partners' rights and obligations.

(u) Anti-Money Laundering Representations.

(i) Purchaser does not know or have any reason to suspect that (A) the monies used to fund Purchaser's investment in the Interest have been or will be derived from or related to any illegal activities, including but not limited to, money laundering activities, or (B) the proceeds from Purchaser's investment in the Interest will be used to finance any illegal or illegitimate activities. Purchaser (x) has conducted thorough due diligence with respect to all of its Related Persons (as applicable), (y) has established the identities of all its Related Persons (as applicable) and the source of each of the Related Person's funds (as applicable) and (z) will retain evidence of any such identities, any such source of funds and any such due diligence. Purchaser understands and agrees that, notwithstanding anything to the contrary contained in any document (including the Partnership Agreement, any side letters or similar agreements), if, following Purchaser's subscription for the Interest, the General Partner reasonably believes that any aspect of a transaction with Purchaser (whether by virtue of Purchaser holding the Interest or otherwise) will be in contravention of Cayman Islands or United States federal, state, international or other laws or regulations, including anti-money laundering, anti-terrorist, anti-proliferation financing, Sanctions, anti-bribery or anti-boycott laws or regulations, the Partnership may be obligated to "freeze the account" of Purchaser, either by prohibiting additional capital contributions or restricting any distributions with respect to Purchaser's Interest. In addition, in any such event, Purchaser may be forced to withdraw from the Partnership or may otherwise be subject to the remedies required by law, and, to the fullest extent permitted by applicable law, Purchaser shall have no claim against any person for any form of damages as a result of any of the actions described in this paragraph.

(ii) Purchaser acknowledges and agrees that the Interest is to be purchased with funds that do not constitute the proceeds of criminal conduct or criminal property within the meaning given in the Proceeds of Crime Act and that the funds Purchaser uses to make capital contributions to the Partnership do and will not originate from, nor will they be routed through, an account maintained at a shell bank[1] and/or a bank organized or chartered under the laws of a country or territory that is designated by the Financial Action Task Force (FATF) as a "High Risk Jurisdiction subject to a Call for Action".

(iii) Purchaser agrees to execute instruments, provide information, or perform any other acts as may reasonably be requested by the Partnership, the General Partner, or other authorized representatives of the Partnership, for purposes of: (A) carrying out due diligence as may be required by applicable law to establish and verify Purchaser's identity and source of funds, as well as those of any of Purchaser's beneficial owner(s)/controller(s) (as applicable) and of any of Purchaser's investors, partners, members, managers, directors, officers, beneficiaries or grantors and beneficial owner(s)/controller(s) of such investors, partners, members, managers, directors, officers, beneficiaries or grantors, as applicable; (B) maintaining records of such identities and sources of funds, or verifications or certifications as to the same; and (C) taking any other actions as

[1]A "shell bank" means any institution that accepts currency for deposit and that (a) has no physical presence in the jurisdiction in which it is incorporated or in which it is operating, as the case may be, and (b) is unaffiliated with a regulated financial group that is subject to consolidated supervision.

may be required to comply with and remain in compliance with anti-money laundering statutes, regulations or conventions applicable to the Partnership (including the use of "truth technologies" such as World-Check, to verify any such information).

(iv) Neither Purchaser nor any Related Person is: (A) a politically exposed person[2]; (B) an immediate family member[3] of any politically exposed person; (C) a close associate[4] of a politically exposed person; or (D) a shell bank.

(v) In the event that Purchaser is a non-U.S. banking institution (a "***Non-U.S. Bank***") or receives deposits from, makes payments to or conducts transactions relating to, a Non-U.S. Bank in connection with Purchaser's investment in the Partnership, such Non-U.S. Bank: (A) has a fixed address, other than an electronic address or a post office box, in a country in which it is authorized to conduct banking activities; (B) employs one or more individuals on a full-time basis; (C) maintains operating records related to its banking activities; (D) is subject to inspection by the banking authority that licensed it to conduct banking activities; and (E) does not provide banking services to any other Non-U.S. Bank that does not have a physical presence in any country and that is not a registered affiliate.

(vi) Purchaser acknowledges and understands that if any person resident in the Cayman Islands, as a result of any information or other matter which comes to its attention, knows or suspects or has reasonable grounds for knowing or suspecting that another person is engaged in criminal conduct or is involved with terrorism or terrorist property and such information for that knowledge or suspicion came to their attention in the course of business in the regulated sector, or other trade, profession, business or employment, the person will be required to report such knowledge or suspicion to (A) the Financial Reporting Authority of the Cayman Islands, pursuant to the Proceeds of Crime Act if the disclosure relates to criminal conduct or money laundering, or (B) a police officer of the rank of constable or higher, or the Financial Reporting Authority, pursuant to the Terrorism Act (as revised) of the Cayman Islands, if the disclosure relates to involvement with terrorism or terrorist financing and property, and such a report will not be treated as a breach of confidence or of any restriction upon the disclosure of information imposed by any enactment or otherwise.

[2] A politically exposed person includes (a) a person who is or has been entrusted with prominent public functions by a foreign country, for example a Head of State or of government, senior politician, senior government, judicial or military official, senior executive of a state owned corporation, and important political party official; (b) a person who is or has been entrusted domestically with prominent public functions, for example a Head of State or of government, senior politician, senior government, judicial or military official, senior executives of a state owned corporation and important political party official; and (c) a person who is or has been entrusted with a prominent function by an international organization like a member of senior management, such as a director, a deputy director and a member of the board or equivalent functions. In addition, a "politically exposed person" includes any corporation, business or other entity that has been formed by, or for the benefit of, a politically exposed person.

[3] An immediate family member of a politically exposed person typically includes the person's spouse, parents, siblings and children.

[4] A close associate of a politically exposed person is any natural person who is known to hold the ownership or control of a legal instrument or person jointly with a politically exposed person, or who maintains some other kind of close business or personal relationship with a politically exposed person, or who holds the ownership or control of a legal instrument or person which is known to have been established to the benefit of a politically exposed person.

(vii) Purchaser agrees that the representations and warranties set forth in this Section 3(u) shall be deemed repeated and reaffirmed by Purchaser as of each date that Purchaser is required to make a contribution of capital to, or to receive a distribution from, the Partnership.

(v) AEOI Compliance. This Section 3(v) applies to the extent Purchaser subscribes for an Interest in Feeder C.

(i) Purchaser acknowledges that, in order to comply with the provisions of AEOI (as defined below), the Partnership and the General Partner and their agents may, from time to time and to the extent provided under AEOI, (a) require further information and/or documentation from Purchaser, which information and/or documentation may (1) include, but is not limited to, information and/or documentation relating to or concerning Purchaser, Purchaser's direct and indirect beneficial owners/controllers (if any), any such person's identity, residence (or jurisdiction of formation) and income tax status, and (2) need to be certified by Purchaser under penalties of perjury, and (b) provide or disclose any such information and documentation to any governmental body that collects information in accordance with AEOI, including the IRS and the Cayman Islands Tax Information Authority, and to any withholding agent where the provision of that information is required by such agent to avoid the application of any withholding tax on any payments to the Partnership;

(ii) Purchaser agrees that it shall provide such information and/or documentation concerning itself and its Related Persons as and when requested by the Partnership, the General Partner or any of their agents as the Partnership, the General Partner or any of their agents, in their respective sole discretions, determine is necessary or advisable for the Partnership to comply with its obligations under AEOI, including forms and documentation which the Partnership may require to determine whether or not Purchaser's relevant investment is a "Reportable Account" (under any AEOI regime) and to comply with the relevant due diligence procedures in making such determination. Purchaser also agrees to update the Partnership regarding any change in circumstance affecting its AEOI status and to update such information and/or documentation to reflect any such status changes.

(iii) To the extent permitted by laws applicable to Purchaser, Purchaser agrees to waive any provision of law of any non-U.S. jurisdiction that would, absent a waiver, prevent Purchaser's compliance with AEOI, including, but not limited to, Purchaser's provision of any requested information and/or documentation.

(iv) Purchaser acknowledges that the General Partner, on behalf of the Partnership, will determine in its sole discretion, whether and how to comply with AEOI, and any such determinations shall include, but not be limited to, an assessment of the possible burden (including compliance costs and withholding taxes) to Purchasers and the General Partner of timely collecting information and/or documentation. Purchaser acknowledges that it will relieve and release the Partnership from liability in the event that such Purchaser suffers additional withholding or a reduction in value of the Interest to the extent resulting from another purchaser's failure to cooperate with the Partnership on AEOI compliance.

(v) Purchaser acknowledges and agrees that it shall have no claim against the Partnership and its agents, including, but not limited to, the General Partner or any other purchaser under any other subscription agreement for interests in the Partnership, or any partner, member, shareholder, director, manager, officer, employee, delegate, agent, affiliate, executor, heir, assign, successor or other legal representative of any of the foregoing persons, for any damages or liabilities attributable to any AEOI compliance-related determinations pursuant to this Section 3(v).

(vi) Purchaser acknowledges and agrees that if it provides information and documentation that is in any way misleading, or it fails to provide the Partnership or its agents with the requested information and documentation necessary in either case to satisfy the Partnership's obligations under AEOI, the Partnership reserves the right (whether or not such action or inaction leads to compliance failures by the Partnership, or a risk of the Partnership or its investors being subject to withholding tax or other costs, debts, expenses, obligations or liabilities (whether external, or internal, to the Partnership) (together, "costs") under AEOI): to take any action and/or pursue all remedies at its disposal including, without limitation, compulsory redemption or withdrawal of Purchaser or transfer of Purchaser's Interests; and to hold back from any redemption or repurchase proceeds, dividend payments or any other distributions any such costs caused (directly or indirectly) by Purchaser's action or inaction (or to allocate any such costs related to Purchaser's non-compliance to such Purchaser on a basis determined solely by the General Partner).

For purposes of this Subscription Agreement, "***AEOI***" means: (i) sections 1471 to 1474 of the Code and any associated legislation, regulations or guidance, and any other similar legislation, regulations or guidance enacted in any other jurisdiction which seeks to implement similar financial account information reporting and/or withholding tax regimes; (ii) the OECD Standard for Automatic Exchange of Financial Account Information in Tax Matters – the Common Reporting Standard and any associated guidance; (iii) any intergovernmental agreement, treaty, regulation, guidance, standard or other agreement between the Cayman Islands (or any Cayman Islands government body) and the United States, the United Kingdom or any other jurisdiction (including any government bodies in such jurisdiction), entered into in order to comply with, facilitate, supplement or implement the legislation, regulations, guidance or standards described in sub-paragraphs (i) and (ii); and (iv) any legislation, regulations or guidance in the Cayman Islands that give effect to the matters outlined in the preceding sub-paragraphs.

(w) Certain Tax Matters.

(i) Purchaser has delivered to the General Partner, concurrently with the execution of this Subscription Agreement, an accurate and complete (under penalties of perjury) signed copy of the appropriate current Internal Revenue Service Form ("***IRS***") W-9 or the applicable Form W-8 (or any successor form thereto) and agrees to deliver to the Partnership such other related forms (including any certificate with respect thereto) as the Partnership may reasonably request. In addition, Purchaser shall deliver promptly to the General Partner an accurate and complete signed copy (under penalties of perjury) of IRS Form W-9 or the applicable IRS Form W-8 (or any successor form thereto) at any time that any prior form delivered to the General Partner becomes inaccurate or incomplete in any respect or upon request, and shall inform the General Partner promptly if Purchaser is no longer legally able to provide such form. Additionally, Purchaser agrees to deliver to the General Partner such other related forms (including any certificate with respect thereto) as the General Partner may reasonably request. Purchaser shall cooperate with the General Partner to provide in a timely manner any other information, form, disclosure, certification or documentation that the General Partner may reasonably request in order to maintain appropriate records and provide for withholding amounts, if any, relating to Purchaser's Interest, or otherwise as the General Partner deems reasonably necessary for the conduct of the Partnership's affairs. Purchaser expressly acknowledges that Tax Forms and withholding information may be provided to any withholding agent that has control, receipt or custody of the income of which Purchaser is the beneficial owner or any withholding agent that can disburse or make payments of the income of which Purchaser is the beneficial owner.

(ii) In order to comply with FATCA (as defined below), the Partnership, the General Partner or any agent, delegate, employee, director, officer or affiliate of any of the foregoing persons shall be entitled to release and to disclose to the IRS, and any other governmental authority (including any political subdivision thereof and any governmental department of taxation) in relation to FATCA, including without limitation, the identity of Purchaser, financial information of Purchaser, information regarding Purchaser's investment in the Partnership, and any information relating to any shareholders, principals, partners, beneficial owners (direct or indirect), or controlling persons (direct or indirect) of such Purchaser (in each case, whether or not Purchaser has ceased to be a Purchaser of an Interest).

(iii) Notwithstanding anything to the contrary contained herein or in any other agreement between or among Purchasers, Purchaser hereby agrees to indemnify, defend and hold harmless the Partnership, the General Partner and their Affiliates from and against any tax liability that arises in connection with such party complying with FATCA (in each case, including any interest, penalties, additions to tax or additional amounts) of or with respect to Purchaser, at any time, and this Section 3(w)(iii) shall survive the termination of this Subscription Agreement and shall survive the termination of the Partnership. In the event of any claimed over-withholding, Purchaser shall be limited to an action against the IRS or other

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applicable government agencies or instrumentalities for refund and Purchaser hereby waives any claim or right of action against the General Partner, the Partnership or any of their Affiliates on account of such withholding.

(iv) For purposes of this Section, "FATCA" means Sections 1471 through 1474 of the Code, any current or future regulations or official interpretations thereof, any agreements entered into pursuant to Section 1471(b)(1) of the Code and any fiscal or regulatory legislation, rules or practices adopted pursuant to any intergovernmental agreements entered into in connection with Sections 1471 through 1474 of the Code.

(v) Purchaser is not acquiring the Interest for a principal purpose of reducing substantially the present value of its U.S. federal tax liability (or Purchaser's aggregate U.S. federal tax liability) in a manner that is inconsistent with the purpose of Subchapter K of the Code within the meaning of Treasury Regulation Section 1.701-2. Purchaser recognizes and agrees that the tax consequences of acquiring, holding and disposing of the Interest are complex and are subject to change. Purchaser has consulted with, and relied solely upon, its own tax advisors in connection with its decision to acquire the Interest.

(vi) Purchaser understands that neither the Partnership nor the General Partner will take into account the particular tax situation of any Purchaser. Purchaser acknowledges and understands that it will be required to file state and local tax returns in many of the jurisdictions in which the Partnership or its investments have assets or activities and that distributions to Purchaser may be subject to withholding in respect of such taxes. Purchaser understands that the Partnership and General Partner expect each prospective Purchaser to consult its own tax advisor with respect to the U.S. federal, state, local and any other income tax consequences of the purchase, ownership and disposition of the Interest.

(vii) The following representations are included with the intention of potentially enabling the Partnership to qualify for the benefit of a "safe harbor" under the Treasury Regulations from treatment of the Partnership as an entity subject to corporate income tax. Either:

(A) Purchaser is not a partnership, grantor trust, or Subchapter S corporation for U.S. federal income tax purposes; or

(B) Purchaser is a partnership, grantor trust, or Subchapter S corporation for U.S. federal income tax purposes, but (x) at no time during the term of the Partnership will 50% or more of the value of any beneficial owner's direct or indirect interest in Purchaser be attributable to Purchaser's Interest, (y) less than 50% of the value of Purchaser is attributable to Purchaser's Interest, and (z) permitting the Partnership to satisfy the 100-partner limitation set forth in Section 1.7704-l(h)(l)(ii) of the Treasury Regulations is not a principal purpose of any beneficial owner of Purchaser in investing in the Partnership through Purchaser.

If Purchaser is an entity that is disregarded as separate from its tax owner for United States federal income tax purposes, the above representation is made with respect to such tax owner. If Purchaser is unable to make either of such representations, Purchaser hereby agrees to provide the General Partner, prior to the effective date of the purchase of the Interest, with evidence (including opinions of counsel) satisfactory in form and substance to the General Partner relating to the status of the Partnership under Section 7704 of the Code.

(x) Purchaser Questionnaire. The information provided by Purchaser in the Purchaser Questionnaire and any attachments thereto is complete and accurate in all respects as of the date hereof and will be as of the date of the Closing applicable to Purchaser, and the Partnership and the General Partner shall be entitled to rely on such information. Purchaser agrees that, if the information provided by Purchaser in the Purchaser Questionnaire or any attachment thereto becomes outdated or inaccurate such that Purchaser would be required to change at least one of its responses in the Purchaser Questionnaire, Purchaser will notify the General Partner promptly of the facts pertaining to such change(s) and will provide the General Partner with such further information as the General Partner may reasonably require.

(y) No Filing Required. It is not necessary to ensure the legality, validity, enforceability or admissibility in evidence of this Subscription Agreement, the Partnership Agreement or the Purchaser Questionnaire that any document be filed, recorded or enrolled by Purchaser with any governmental department or other authority in any relevant jurisdiction.

(z) Solvency. Prior to, and at the time of, and immediately following the execution of this Subscription Agreement by Purchaser, Purchaser was, is and will be able to pay its debts as they fall due. Purchaser has entered into this Subscription Agreement for proper value and not with an intention to defraud or hinder its creditors by way of fraudulent preference.

(aa) No Distribution of Offering Materials. Except as required by law or regulation, neither Purchaser nor any of its representatives has reproduced, duplicated or delivered the Memorandum, any offering materials or disclosed any of the contents thereof to any other person, other than its respective officers, directors and employees, or as expressly consented to by the General Partner or the Partnership.

(bb) Management Fee Election. In the case of a Purchaser that is an Investor Limited Partner, such Purchaser acknowledges that its election with respect to the Management Fee set forth on the Management Fee Election page herein shall be irrevocable upon such Purchaser’s admission to the Partnership.

(cc) Final Form of Agreements. Purchaser has not altered or otherwise revised this Subscription Agreement or the Purchaser Questionnaire in any manner from the version initially received by Purchaser, other than completing the Limited Partner Signature Page and providing the information about Purchaser as required herein or therein.

In the event Purchaser has, contrary to the foregoing representation, altered or otherwise revised this Subscription Agreement or the Purchaser Questionnaire, Purchaser agrees that such alteration or other revision shall be null and void and the version initially received by Purchaser shall have full force and effect upon acceptance by the General Partner unless the General Partner has initialed its acceptance of such alteration. Purchaser understands and acknowledges that its investment in the Interest will be subject to the terms and conditions of this Subscription Agreement, the Purchaser Questionnaire and the Partnership Agreement, as the same may be amended from time to time in accordance with their respective terms.

(dd) Effect and Time of Representations. The foregoing representations, warranties, covenants and agreements, together with all other representations, warranties, covenants and agreements made or given by Purchaser to the Partnership or the General Partner in any other written statement or document delivered in connection with the transactions contemplated hereby (including, for the avoidance of doubt, the Purchaser Questionnaire), shall be true and correct in all respects on and as of the date the General Partner accepts this subscription as if made on and as of such date and shall survive such date. In addition, Purchaser agrees to notify the General Partner promptly of any change in any representation, warranty, covenant or agreement relating to Purchaser set forth herein and to provide the General Partner with such further information as the General Partner may reasonably require.

4. **Indemnification.** Purchaser represents that it understands the meaning and legal consequences of the representations, warranties and covenants set forth in Section 3 hereof and that the Partnership and the General Partner have relied and will rely upon such representations, warranties and covenants, and it hereby agrees to indemnify and hold harmless the Partnership, the General Partner, and their respective Affiliates, partners, directors, officers, members, managers, controlling persons, agents and employees (each, an "***Indemnified Person***"), from and against any and all loss, damage or liability, joint or several, and any action in respect thereof, to which any such person may become subject due to or arising out of a breach of any such representation, warranty, agreement or covenant. The reimbursement and indemnity obligations of Purchaser under Section 4 shall be in addition to any liability which Purchaser may otherwise have, including liabilities under the Partnership Agreement, and shall be binding upon and inure to the benefit of any successors, assigns, heirs, estates, executors, administrators and personal representatives of the Indemnified Persons. To the extent any Indemnified Person is not a party to this Subscription Agreement and is therefore unable to directly enforce the indemnity provisions of this Section 4, it is agreed that the General Partner shall be entitled and is hereby authorized, but is not obliged, to enforce the provisions of this Section 4 on behalf of each Indemnified Person. With respect to Purchasers subscribing for an Interest in Feeder C or an Alternative Investment Vehicle of the Partnership, it is expressly intended that the rights granted to each Indemnified Person in this Subscription Agreement are intended to be directly enforceable by such Indemnified Person for the purposes of the Contracts (Rights of Third Parties) Act, 2014. Notwithstanding any other term of this Subscription Agreement, the consent of any person who is not a party to this Subscription Agreement (including, without limitation, any Indemnified Person) is not required for any variation of, amendment to, or release, rescission, or termination of, this Subscription Agreement.

5. **Partnership Advisers**. The attorneys, accountants and other experts and agents who perform services for the General Partner may also perform services for the Fund and any other parallel fund and/or their respective affiliates. It is contemplated that any such dual representation, if commenced, will continue. The General Partner may, without the consent of any Limited Partner, execute on behalf of the Partnership any consent to the representation of the Partnership that counsel may request pursuant to the rules of professional conduct in the applicable jurisdiction. The General Partner has retained Vinson & Elkins L.L.P. ("***V&E***") and Appleby (Cayman) Ltd. ("***Appleby***") as legal counsel in connection with the formation of the Partnership and may retain V&E and/or Appleby as legal counsel in connection with the management and operation of the Partnership, including making, holding and disposing of investments. Neither V&E nor Appleby will represent the Purchaser or any other Limited Partner or prospective limited partner of the Partnership, unless the General Partner and such Limited Partner or prospective limited partner otherwise agree, in connection with the formation of the Partnership, the offering of the Interests, the management and operation of the Partnership or any dispute that may arise between any Limited Partner, on one hand, and the General Partner and/or the Partnership, on the other hand (the "***Partnership Legal Matters***"). The Purchaser will, if it wishes counsel on any Partnership Legal Matter, retain its own independent counsel with respect thereto and will pay all fees and expenses of such independent counsel. The Purchaser agrees that V&E and Appleby may represent the General Partner and/or the Partnership in connection with the formation of the Partnership and any and all other Partnership Legal Matters (including any dispute between the General Partner and the Purchaser or any other Partner). The Purchaser acknowledges and agrees that (i) V&E's and Appleby's representation of the General Partner is limited to the specific matters with respect to which it has been retained and consulted by such Persons, (ii) there may exist other matters that could have a bearing on the Partnership, the Partnership's investments and portfolio companies, the General Partner and/or their respective affiliates as to which V&E and Appleby have been neither retained nor consulted, (iii) neither V&E nor Appleby undertakes to monitor the compliance of the General Partner and its affiliates with the investment program and other investment guidelines and procedures set forth in the Memorandum, the Partnership Agreement and any other presentation or materials presented or provided to the Purchaser by or on behalf of the General Partner or other compliance matters, nor does V&E or Appleby monitor compliance by the Partnership, the General Partner and/or their respective affiliates with applicable laws, unless in each case V&E or Appleby, as the case may be, has been specifically retained to do so, (iv) V&E and Appleby do not investigate or verify the accuracy and completeness of information set forth in the offering materials concerning the Partnership, the General Partner or any of their respective affiliates and personnel or investments or portfolio companies and (v) except for any opinions specifically set forth in a signed opinion letter issued by V&E and/or Appleby, as the case may be, neither V&E nor Appleby, as the case may be, is providing any advice, opinion, representation, warranty or other assurance of any kind as to any matter to any Limited Partner.

6. **Survival.** All representations, warranties and covenants contained in this Subscription Agreement and the Purchaser Questionnaire, and the indemnification contained in Section 3(v)(iv), Section 3(w)(iii) and Section 4 hereof, shall survive the execution, delivery and acceptance of this Subscription Agreement, the Purchaser Questionnaire and the Partnership Agreement.

7. **Applicable Law; Jurisdiction; Waiver of Jury**.

(a) This Subscription Agreement, the Purchaser Questionnaire, all questions concerning the construction, interpretation and validity of this Subscription Agreement or the Purchaser Questionnaire, the rights and obligations of the parties hereunder or thereunder, all claims or causes of action that may be based upon, arise out of or related to this Subscription Agreement or the Purchaser Questionnaire (whether arising in contract, tort or otherwise) and the negotiation, execution or performance of this Subscription Agreement or the Purchaser Questionnaire (including, without limitation, any claim or cause of action based upon or arising out of or related to any representation or warranty made in or in connection with this Subscription Agreement or the Purchaser Questionnaire or as an inducement to enter this Subscription Agreement) shall be governed by and construed and enforced in accordance with the laws of the State of Delaware applicable to agreements made and to be performed wholly within that jurisdiction, but not including the choice of law rules thereof.

(b) To the fullest extent permitted by applicable law, any action or proceeding against the parties relating in any way to this Subscription Agreement or the Purchaser Questionnaire may be brought and enforced in the courts of the State of Delaware or the United States District Court for the District of Delaware, and the parties irrevocably submit to the jurisdiction of both such courts in respect of any such action or proceeding. The parties irrevocably waive, to the fullest extent permitted by law, any objection that they may now or hereafter have to the laying of venue of any such action or proceeding in the courts of the State of Delaware or the United States District Court for the District of Delaware and any claim that any such action or proceeding brought in any such court has been brought in any inconvenient forum.

(c) To the extent not prohibited by applicable law that cannot be waived, Purchaser waives, and covenants that such Purchaser shall not assert (whether as plaintiff, defendant or otherwise), any right to trial by jury in any forum in respect of any issue, claim or proceeding arising out of this Subscription Agreement, the Purchaser Questionnaire or the subject matter hereof or in any way connected with the dealings of Purchaser, any Partner or the Partnership or any of their Affiliates in connection with any representation, warranty, covenant or agreement contained in this Subscription Agreement, the Purchaser Questionnaire or any transaction contemplated by this Subscription Agreement, in each case whether now existing or hereafter arising and whether in contract, tort or otherwise. The Partnership or Purchaser may file an original counterpart or a copy of this Section 7 with any court in any jurisdiction as written evidence of the consent of Purchaser or the General Partner to the waiver of their respective rights to trial by jury.

(d) Notwithstanding subsection (b) or (c) of this Section 7, if Purchaser is a Governmental Plan or other governmental entity or supranational organization and has provided the General Partner, prior to the acceptance of this Subscription Agreement, with a certificate of an officer of its plan administrator or other writing reasonably acceptable to the General Partner stating that such an irrevocable submission to jurisdiction or waiver of objection to venue or right to trial by jury, as the case may be, would constitute a violation of applicable law, regulation or established policy, Purchaser shall not be deemed to have made such an irrevocable submission or waiver, as the case may be.

8. **Assignment.** Purchaser agrees that it will not transfer or assign this Subscription Agreement or its rights and obligations hereunder, and further agrees that the assignment and transferability of the Interest acquired pursuant hereto shall be made only in accordance with the Partnership Agreement.

9. **Binding Effect.** Except as otherwise provided herein, this Subscription Agreement and the Purchaser Questionnaire shall be binding upon and inure to the benefit of the parties and their heirs, executors, administrators, successors, legal representatives, and permitted assigns.

10. **Entire Agreement.** This Subscription Agreement, the Purchaser Questionnaire and the Partnership Agreement, together with all attachments, schedules and exhibits thereto, supersede any oral or written agreements or understandings heretofore made, and contain the entire agreement of the parties, and there are no representations, warranties, covenants, or other agreements except as stated or referred to herein or therein. In the event of conflict between the terms of the Partnership Agreement and this Subscription Agreement or the Purchaser Questionnaire, the Partnership Agreement shall control.

11. **Amendment.** This Subscription Agreement may be modified or amended only with the written consent of the Partnership and Purchaser, except that modifications, amendments, waivers, consents, or other matters relating to the Partnership Agreement shall not be deemed modifications or amendments of this Subscription Agreement.

12. **Counterparts.** This Subscription Agreement may be executed in one or more separate counterparts, each of which when so executed shall be deemed to be an original and all of which taken together shall constitute one and the same agreement.

13. **Gender; Headings; "Including".** Pronouns in neuter gender shall be construed to include any other gender unless the context clearly otherwise requires. Headings appearing at the beginning of any section are for convenience only and shall not constitute part of such section and shall be disregarded in construing the language contained in such section. The word "includes" and its derivatives means "includes, but is not limited to" and corresponding derivative expressions.

14. **Severability.** Should any portion or provision of this Subscription Agreement or the Purchaser Questionnaire be declared illegal, invalid or unenforceable in any jurisdiction, then such portion or provision shall be deemed to be severable from this Subscription Agreement or the Purchaser Questionnaire, as applicable, to the extent practicable while preserving the economic intention of the parties and, in any event, such illegality, invalidity or unenforceability shall not affect the remainder hereof.

15. **Further Assurances.** Purchaser will promptly furnish to the General Partner such additional information that the General Partner may hereafter reasonably require in order to determine or verify the information provided herein or which the General Partner reasonably believes will enable the Partnership to comply with all applicable statutes, rules, regulations and

policies, including any policies applicable to an investment held or proposed to be held by the Partnership.

16. **PDF Signature Pages.** This Subscription Agreement and the Purchaser Questionnaire may be validly executed and delivered by PDF format through electronic mail and such documents shall be considered authentic and binding.

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MANAGEMENT FEE ELECTION

Each Purchaser that will become an Investor Limited Partner will elect the Management Fee rate it pays with respect to the Fund. The Purchaser's election with respect to its Management Fee rate shall be irrevocable upon Purchaser's admission to the Partnership as a Limited Partner. Please see the Partnership Agreement and the Memorandum for further details on the Management Fee. Capitalized terms used but not otherwise defined herein shall have the respective meanings assigned to such terms in the Partnership Agreement.

Please select the Purchaser's Management Fee rate below.

☑ **Option 1**: Management Fee based upon Base Amount.

For Early Closing Investor Limited Partners: During the Commitment Period, 1.75% of its Base Amount, and after the Commitment Period, 1.5% of its Base Amount.

For Later Closing Investor Limited Partners: During the Commitment Period, 2% of its Base Amount, and after the Commitment Period, 1.5% of its Base Amount.

☐ **Option 2**: Management Fee based upon Commitments during the Commitment Period and Base Amount following the Commitment Period.

For Early Closing Investor Limited Partners: During the Commitment Period, 1.4% of its Commitment, and after the Commitment Period, 1.4% of its Base Amount.

For Later Closing Investor Limited Partners: During the Commitment Period, 1.5% of its Commitment, and after the Commitment Period, 1.5% of its Base Amount.

☐ **Option 3**: The Purchaser is a Related Limited Partner.

LIMITED PARTNER SIGNATURE PAGE

IN WITNESS WHEREOF, the undersigned has executed this Limited Partner Signature Page for the purchase of the Interest in the Partnership. This page constitutes the signature page for each of (i) the Subscription Agreement for the purchase of the Interest with a Commitment in the amount set forth below, (ii) the Management Fee Election, (iii) the Purchaser Questionnaire and all annexes attached thereto and (iv) the Partnership Agreement, in each case as a deed. Upon acceptance by the General Partner, the undersigned shall be admitted as a Limited Partner of the Partnership and hereby authorizes this signature page to be attached to a counterpart of the Partnership Agreement executed by the General Partner as a deed.[5]

FOR COMPLETION BY PURCHASERS WHO ARE NOT NATURAL PERSONS (i.e., entities, trusts or IRAs):

Dated: 09/25/2024
[***Date***]

$ 37,500,000.00
[***Insert $ amount of "Commitment"***]

Stone Garden Holdings, LP (1)
[***Printed Name of Limited Partner***]

By: ______________________________ (2)
[***Signature of Authorized Person***]

Zachary Matula (3)
[***Name of Authorized Person***]

Manager of General Partner (4)
[***Title of Authorized Person***]

[**Instructions:** (1) Type or print the name of the Limited Partner on this line; (2) Place the signature of the person signing on behalf of the Limited Partner on this line; (3) Type or print the name of the individual signing on behalf of the Limited Partner on this line; (4) Type or print the title of the person signing on behalf of the Limited Partner on this line.]

[5] As used in this Limited Partner Signature Page, the "Partnership" shall be deemed to refer to the partnership listed on the General Partner Acceptance Page hereto. The "Partnership Agreement" shall be deemed to refer to the limited partnership agreement governing the Partnership.

LIMITED PARTNER SIGNATURE PAGE

IN WITNESS WHEREOF, the undersigned has executed this Limited Partner Signature Page for the purchase of the Interest in the Partnership. This page constitutes the signature page for each of (i) the Subscription Agreement for the purchase of the Interest with a Commitment in the amount set forth below, (ii) the Management Fee Election, (iii) the Purchaser Questionnaire and all annexes attached thereto and (iv) the Partnership Agreement, in each case as a deed. Upon acceptance by the General Partner, the undersigned shall be admitted as a Limited Partner of the Partnership and hereby authorizes this signature page to be attached to a counterpart of the Partnership Agreement executed by the General Partner as a deed.[6]

FOR COMPLETION BY PURCHASERS WHO ARE NATURAL PERSONS (i.e., individuals):

Dated: ______________________________
[***Date***]

$ ______________________________
[***Insert $ amount of "Commitment"***]

WITNESS
In the presence of

______________________________(5)	______________________________ (1)
[***Printed name of Witness***]	[***Printed Name of Limited Partner***]
______________________________ (6)	______________________________ (2)
[***Signature of Witness***]	[***Signature of Limited Partner***]

WITNESS
In the presence of

______________________________(7)	______________________________ (3)
[***Printed name of Witness***]	[***Printed Name of Spouse*** *(See Instructions Below)*]
______________________________ (8)	______________________________ (4)
[***Signature of Witness***]	[***Signature of Spouse*** *(See Instructions Below)*]

[**Instructions:** (1) Type or print the name of the Limited Partner on this line; (2) Place the signature of the Limited Partner on this line; (3) **If the subscription is being made by a married couple as joint tenants**, type or print the name of the spouse on this line; (4) **If the subscription is being made by a married couple as joint tenants**, place the signature of the spouse on this line; (5) Type or print the name of the witness to the Limited Partner's signature on this line; (6) Place the signature of the witness to the Limited Partner's signature on this line. The witness to the Limited Partner's signature should not be the Limited Partner or his/her spouse (unless such spouse was not required to sign this page). (7) **If the subscription is being made by a married couple as joint tenants**, type or print the name of the witness to the spouse's signature on this line; (8) **If the subscription is being made by a married couple as joint tenants**, place the signature of the witness to the spouse's signature on this line. The witness to the spouse's signature should not be the Limited Partner or the spouse.]

[6] As used in this Limited Partner Signature Page, the "Partnership" shall be deemed to refer to the partnership listed on the General Partner Acceptance Page hereto. The "Partnership Agreement" shall be deemed to refer to the limited partnership agreement governing the Partnership.

GENERAL PARTNER ACCEPTANCE PAGE

[*Not To Be Completed By Purchaser*]

Subscription for $______________ of Interest accepted as of ________________, 20___.

ENCAP EQUITY FUND XII GP, L.P.,
(on its own behalf and as General Partner for and on behalf of the following partnership):

☐ **ENCAP ENERGY CAPITAL FUND XII, L.P.**

☐ **ENCAP ENERGY CAPITAL FUND XII-B, L.P.**

☐ **ENCAP ENERGY CAPITAL FUND XII-C, L.P.**

By: **ENCAP EQUITY FUND XII GP, LLC,**
its general partner

By: **ENCAP INVESTMENTS L.P.**,
its sole member

By: **ENCAP INVESTMENTS GP, L.L.C.,**
its general partner

By: **ENCAP INVESTMENTS HOLDINGS, LLC**, its sole member

By: **ENCAP PARTNERS, LP,**
its managing member

By: **ENCAP PARTNERS GP, LLC,**
its general partner

By: ________________________________
Name: Jason M. DeLorenzo
Title: Managing Member

ENCAP ENERGY CAPITAL FUND XII

<u>Purchaser Questionnaire</u>[7]

[7] Capitalized terms used but not otherwise defined herein shall have the respective meanings assigned to such terms in the Subscription Agreement.

ANNEX A

PURCHASER INFORMATION FORM

1. Full legal name of Purchaser (please do not use abbreviations or all caps):

   Stone Garden Holdings, LP

2. If Purchaser is a natural person, an individual retirement account ("***IRA***") or a revocable trust, please fill in the blanks below for this Question 2. Purchasers who are IRAs or revocable trusts should fill out the below information with respect to the beneficiary of the IRA or the grantor of the trust. (*Purchasers who are entities, please skip to Question 3*):

   a. State or Province of Residence:__________

   b. Country of Residence:__________

   c. Home Address:__________

   d. Telephone:__________

   e. Email Address:__________

   f. Place of Birth:__________

   g. Date of Birth:__________

   h. If Purchaser is subscribing as a trustee or custodian for an IRA, custodian's or trustee's U.S. tax identification number (i.e., SSN, EIN and/or ITIN, as applicable):

   ____

3. If Purchaser is an entity (and not an IRA or revocable trust), please fill in the blanks below for this Question 3 (*Purchasers who are natural persons, please skip to Question 4*):

   a. Jurisdiction of Domicile: United States of America

   b. Jurisdiction of Organization: Texas

   c. Year of Organization: 2024

   d. Contact Person (Name and Title): Andrew Luong, Financial Controller

   e. Phone Number: 2817049395

   f. Email Address: andrew@stonegardengroup.com

g. Principal Place of Business:

1885 Saint James Place, Suite 710
Houston, TX 77056
____

h. Registered Address:

☑ Same as Principal Place of Business (*if selected, skip to Question 4*)

☐ Different from Principal Place of Business (provide registered address below):

____
____
____

4. Please provide the state or province and country where the decision to invest in the Partnership was made:

Texas

5. **Form of Person/Entity**. Purchaser represents that it is (please check only one):

☐ an individual

☐ a corporation

☐ a general partnership

☑ a limited partnership

☐ a limited liability company

☐ a Massachusetts or similar business trust

☐ a foundation

☐ an endowment

☐ an employee benefit plan

☐ a trust other than an employee benefit plan (specify type): ___________________

☐ a government, governmental agency or other governmental entity (not organized in a form indicated above)

☐ Other (please specify):__________________________

6. **Disregarded Entity**. Is Purchaser treated as an entity disregarded as separate from its owner for U.S. federal income tax purposes pursuant to Treasury Regulations Section 301.7701-3(b)?

☐ Yes ☑ No

If "Yes," does Purchaser have a tax identification number?

☐ Yes ☐ No

If "Yes," please provide Purchaser's tax identification number:________________

7. **Nominee**. Is Purchaser a nominee, custodian or person acting in a similar capacity?

☐ Yes ☑ No

If "Yes," Purchaser certifies that the beneficial owner for whom Purchaser is acting as a nominee, custodian or in a similar capacity (a) has the sole power to direct the acquisition, disposition and voting of the Interest and (b) will be the sole beneficiary of any and all interests (whether economic, voting or otherwise) relating to the Interest.

☐ Yes ☐ No

8. **Beneficial Ownership**. Please list all 10% or greater beneficial owners of Purchaser. For any 10% or greater beneficial owner that is an entity, please list the entity and then continue to list any such entity's beneficial owners up the chain of ownership until natural persons are listed. For purposes of this question, a person is deemed to be a "beneficial owner" of securities of Purchaser if such person is a shareholder, member, partner or beneficiary (if Purchaser is a trust) of Purchaser.

☐ Purchaser is a natural person or an entity that has no 10% or greater beneficial owners

☑ The following is a list of <u>every</u> 10% or greater beneficial owner of Purchaser:

Scott Daniel Duncan

Scott Daniel Duncan 1992 Grandchildren's Trust

9. **Signatory**. The following individual(s) will sign on behalf of Purchaser:

Name: Zachary Matula

Title: Manager of General Partner

Company: Stone Garden Holdings, LP

Citizenship: USA

Name: ____

Title: ____

Company: ____

Citizenship: ____

Please review and confirm the below regarding signatory authority documentation:

☑ Purchaser has attached an authorized signatory list, certificate of incumbency, or other documentation demonstrating signatory authority for the above individual(s) that has been executed by someone other than the above individual(s).

10. **Foreign Status**.

a. Check "Yes" below if Purchaser is neither (a) a pass-through entity[8] for U.S. federal income tax purposes nor (b) a "United States person" within the meaning of Section 7701(a)(30) of the Code.[9] Otherwise, check "No" (i.e., if Purchaser is a pass-through entity or a "United States person" other than a pass-through entity).

☐ Yes ☑ No

b. Check "Yes" below if Purchaser is both (a) treated as a pass-through entity for U.S. federal income tax purposes (see the definition of "pass-through entity" above), and (b) is owned in whole or in part directly (or indirectly through one or more pass-through entities) by at least one person, who is neither a pass-through entity nor a "United States person" within the meaning of Section 7701(a)(30) of the Code (see the definition of "United States person" above). Otherwise, check "No" (i.e., if

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[8] "Pass-through Entity" means an entity that is treated, for U.S. federal income tax purposes, as a partnership, disregarded entity, trust, S corporation, or qualified Subchapter S subsidiary or any other entity treated as transparent for U.S. federal income tax purposes.

[9] "United States person" means (i) an individual who is a U.S. citizen or U.S. resident alien, (ii) a corporation, or other entity taxable as a corporation for U.S. federal income tax purposes, that was created or organized in or under the laws of the United States, any state thereof or the District of Columbia, (iii) a partnership, or other entity classified as a partnership for U.S. federal income tax purposes, that was created or organized in or under the laws of the United States, any state thereof or the District of Columbia, (iv) an estate whose income is subject to U.S. federal income taxation regardless of its source, or (v) a trust, if (A) a court within the United States is able to exercise primary supervision over the administration of the trust and one or more United States persons have the authority to control all substantial decisions of the trust, or (B) the trust has a valid election in effect under applicable U.S. Treasury Regulations to be treated as a United States person.

Purchaser is not a pass-through entity or is a pass-through entity and all of its direct and indirect owners, looking through any other pass-through entities, are "United States persons").

☐ Yes ☑ No

11. **Tax Exempt Status**.

a. Is Purchaser exempt from U.S. federal income taxation, including under Section 501 of the Code?

☐ Yes ☑ No

b. Is Purchaser treated as a flow-through vehicle for U.S. federal income tax purposes and one or more of its owners are exempt from the U.S. federal income taxation, including under Section 501 of the Code?

☐ Yes ☑ No

12. **Main Fund/Feeder Selection**. Please check the box next to the Partnership in which Purchaser wishes to invest. *Note: the General Partner expects most U.S. taxable investors would invest in the Main Fund, and generally Purchasers should only consider Feeder B or Feeder C due to special tax characteristics. Please see the Confidential Private Placement Memorandum, dated February 28, 2023 (as amended or supplemented), of the Fund for additional information regarding Feeder B and Feeder C.*

☑ EnCap Energy Capital Fund XII, L.P. (the Main Fund)

☐ EnCap Energy Capital Fund XII-B, L.P. (Feeder B)

☐ EnCap Energy Capital Fund XII-C, L.P. (Feeder C)

ANNEX B

SECURITIES ACT CERTIFICATIONS

Certification. PLEASE CHECK BELOW EACH AND EVERY STATEMENT THAT DESCRIBES PURCHASER.

☐ 1. Purchaser is (a) a corporation, (b) a partnership, (c) a limited liability company, (d) an organization described in Section 501(c)(3) of the Code, or (e) a Massachusetts or similar business trust, not formed for the specific purpose of acquiring the Interest, with total assets in excess of $5,000,000.

☐ 2. Purchaser is an entity which falls within one of the following categories of institutional accredited investors described in Rule 501(a) of Regulation D under the Securities Act:

☐ (a) A bank as defined in Section 3(a)(2) of the Securities Act, or a savings and loan association or other institution as defined in Section 3(a)(5)(A) of the Securities Act, whether acting in its individual or a fiduciary capacity.

☐ (b) A broker or dealer registered pursuant to Section 15 of the Securities Exchange Act of 1934, as amended.

☐ (c) An investment adviser registered pursuant to Section 203 of the Investment Advisers Act or registered pursuant to the laws of a state.

☐ (d) An investment adviser relying on the exemption from registering with the Securities and Exchange Commission under Section 203(l) or (m) of the Investment Advisers Act.

☐ (e) An insurance company as defined in Section 2(a)(13) of the Securities Act.

☐ (f) An investment company registered under the Investment Company Act or as a business development company as defined in Section 2(a)(48) of the Investment Company Act.

☐ (g) A Small Business Investment Company licensed by the U.S. Small Business Administration under Section 301(c) or (d) of the Small Business Investment Act of 1958, as amended.

☐ (h) A Rural Business Investment Company as defined in Section 384A of the Consolidated Farm and Rural Development Act.

☐ (i) A private business development company as defined in Section 202(a)(22) of the Investment Advisers Act.

☐ (j) A plan established and maintained by a state, its political subdivisions, or any agency or instrumentality of a state or its political subdivisions for the benefit of its employees, if such plan has total assets in excess of $5,000,000.

☐ (k) An employee benefit plan within the meaning of ERISA, if (i) the investment decision is made by a plan fiduciary, as defined in Section 3(21) of ERISA, which is either a bank, savings and loan association, insurance company or a registered investment advisor, (ii) the employee benefit plan has total assets in excess of $5,000,000, or (iii) a self-directed plan, with investment decisions made solely by persons that are accredited investors.

☐ (l) A trust with total assets in excess of $5,000,000, not formed for the specific purpose of acquiring the Interest, whose purchase is directed by a sophisticated person as described in Rule 506(b)(2)(ii) of Regulation D under the Securities Act.

☐ (m) A family office, as defined in Rule 202(a)(11)(G)-1 under the Investment Advisers Act (i) with assets under management in excess of $5,000,000, (ii) that is not formed for the specific purpose of acquiring the Interest, and (iii) whose prospective investment is directed by a person who has such knowledge and experience in financial and business matters that such family office is capable of evaluating the merits and risks of the prospective investment.

☑ (n) A family client, as defined in Rule 202(a)(11)(G)-1 under the Investment Advisers Act, of a family office meeting the requirements in paragraph 2(m) above and whose prospective investment in the issuer is directed by such family office pursuant to paragraph 2(m) above.

☐ 3. Purchaser is a director, executive officer or general partner of the Partnership, or a director, executive officer or general partner of the General Partner.

☐ 4. Purchaser is a natural person whose net worth, either individually or jointly with such person's spouse, at the time of the purchase of the Interest, exceeds $1,000,000. For purposes of this item, "net worth" means the excess of total assets at fair market value (excluding the value of the primary residence of such natural person), over total liabilities (including indebtedness secured by the primary residence of such natural person in excess of the estimated fair market value of such residence at the time of purchase of the Interest).

☐ 5. Purchaser is a natural person who had individual income in excess of $200,000, or joint income with that person's spouse in excess of $300,000, in each of the two preceding completed years and reasonably expects to reach the applicable level or levels in the current year.

☐ 6. Purchaser is a natural person holding in good standing one or more professional certifications or designations or credentials from an accredited educational institution that the Securities and Exchange Commission has designated as qualifying from time to time. The currently recognized professional certifications or designations or credentials can be found on the Securities and Exchange Commission's website.[10]

☐ 7. Purchaser is a natural person who is a knowledgeable employee, as defined in Rule 3c-5(a)(4) under the Investment Company Act, of the Partnership.

☐ 8. Purchaser is an entity in which all of the equity owners are accredited investors as described in one or more of the categories set forth in paragraphs 1 through 7 above; *provided* that if this certification is selected, Purchaser makes the additional representations, warranties and covenants listed in footnote 11 of this Annex B[11]. Please note that this response is not applicable for irrevocable trusts.

☐ 9. Purchaser is an entity, of a type not listed in paragraphs 1, 2(a) through (l), or 8 hereof, not formed for the specific purpose of acquiring the Interest, owning investments, as defined in Rule 2a51-1(b) under the Investment Company Act, in excess of $5,000,000.

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[10] In the Fact Sheet dated August 26, 2020, the Securities and Exchange Commission designated Series 7, Series 65 and Series 82 licenses as qualifying.

[11] Purchaser hereby represents, warrants and covenants with respect to each stockholder, partner, member or other beneficial owner of Purchaser (each, a "Beneficial Owner") that: (i) Purchaser is sufficiently familiar with each such Beneficial Owner's regulatory status and/or asset ownership to make representations on each such Beneficial Owner's behalf; (ii) each such Beneficial Owner qualifies as an "accredited investor" under one or more of the provisions of this Annex B; (iii) the Partnership may rely on Purchaser's representations on behalf of each such Beneficial Owner hereunder to the same extent as if each such Beneficial Owner had completed this Purchaser Questionnaire; and (iv) Purchaser shall permit no direct or indirect transfer of beneficial interests in Purchaser that at any time would result in any of the representations contained in clauses (i) through (iii) ceasing to be true.

ANNEX C

INVESTMENT COMPANY ACT CERTIFICATIONS

Part I

1. Is Purchaser an Affiliate of any other Purchaser in the Partnership?

☐ Yes ☑ No

2. Has Purchaser entered into a voting agreement or similar agreement with any other purchaser of an interest in the Partnership, pursuant to which either Purchaser or such other purchaser is entitled to direct the voting of the other's Interest in the Partnership, or pursuant to which Purchaser and the other purchaser share voting authority with respect to their Interest in the Partnership?

☐ Yes ☑ No

If the answer to Question 1 or Question 2 above is "Yes," please provide a description of such arrangements.

____
____
____
____

3. Is Purchaser an "investment company," as defined in Section 3(a) of the Investment Company Act, registered or required to be registered under the Investment Company Act; or a "business development company," as defined in Section 2(a)(48) of the Investment Company Act?

☐ Yes ☑ No

4. Would Purchaser be an "investment company" as defined in Section 3(a) of the Investment Company Act if it were not exempt from such definition due to Section 3(c)(1) or Section 3(c)(7) of the Investment Company Act?

☑ Yes ☐ No

If the answer is to Question 4 above is "Yes," please answer Question 4(a) below. If the answer is "No," please skip to Question 5.

a. If Purchaser answered "Yes" to the question above, did any of Purchaser's beneficial owners acquire their interests in Purchaser on or before April 30, 1996?

☐ Yes ☐ No

If the answer to Question 4(a) is "Yes," please answer Question 4(b) below. If the answer is "No," please skip to Question 5.

b. If Purchaser answered "Yes" to the question above, have all the beneficial owners of Purchaser's securities consented (as required under Section 2(a)(51)(C) of the 1940 Act) to Purchaser's treatment as a Qualified Purchaser?

☐ Yes ☐ No

5. Was Purchaser formed or recapitalized for the specific purpose of acquiring the Interest?

☐ Yes ☑ No

6. Is Purchaser's commitment to the Partnership more than forty percent (40%) of Purchaser's assets (including committed capital)?

☐ Yes ☑ No

7. Do the governing documents of Purchaser allow each beneficial owner or plan beneficiary to vary his, her or its share of the profits and losses or the amount of his, her or its contribution for any individual investment made by Purchaser (i.e., the governing documents do not require that each beneficial owner or plan beneficiary of Purchaser to participate through his, her or its interest in Purchaser in all of Purchaser's investments and that the profits and losses from each such investment are shared among such beneficial owners in the same proportions as all other investments)?

☐ Yes ☑ No

8. **If Purchaser responded "yes" to any of Questions 5, 6 or 7 of this Annex C, Purchaser hereby makes the representations, warranties, and covenants listed in footnote 12 of this Annex C.[12]**

9. In the space below, please specify the number of direct or indirect beneficial owners of Purchaser's securities as interpreted under the Investment Company Act (other than short-term paper, as such term is interpreted under the Investment Company Act).

2 beneficial owners (1 beneficial owner if looking-through to Trust beneficiary)

[12] Purchaser hereby represents, warrants and covenants with respect to each beneficial owner of Purchaser's securities or plan beneficiary, as applicable (each, a "Beneficial Owner"), that: (i) Purchaser is sufficiently familiar with each such Beneficial Owner's regulatory status and/or Investment ownership to make representations on each such Beneficial Owner's behalf; (ii) each such Beneficial Owner is sufficiently qualified in such Beneficial Owner's own right to make a direct investment in the Partnership under the requirements set forth in this Purchaser Questionnaire (i.e., as an "accredited investor," a "qualified client" and a "qualified purchaser", in each case, to the extent Purchaser meets any such qualification on its own right as indicated herein); (iii) the Partnership may rely on Purchaser's representations on behalf of each such Beneficial Owner hereunder to the same extent as if each such Beneficial Owner had completed this Purchaser Questionnaire; and (iv) Purchaser shall permit no direct or indirect changes in beneficial ownership in Purchaser that at any time would result in any of the representations contained in clauses (i) through (iii) above ceasing to be true.

Part II

Qualified Purchaser Certification. PLEASE CHECK BELOW EACH AND EVERY STATEMENT THAT IS TRUE:

☐ Purchaser is a natural person who owns not less than $5,000,000 in "Investments" either separately or jointly or as community property with his or her spouse. *See Part IV of this Annex C for the definition of and method for calculating the value of "Investments."*

☐ Purchaser is a person, acting for its own account or the accounts of other "qualified purchasers," that (a) was not formed or reformed for the specific purpose of acquiring the securities offered by the Partnership; and (b) in the aggregate owns and invests on a discretionary basis not less than $25,000,000 in "Investments." *See Part IV of this Annex C for the definition of and method for calculating the value of "Investments."*

☐ Purchaser is a "family company" that (a) owns not less than $5,000,000 in "Investments" and (b) was not formed or reformed for the specific purpose of acquiring the securities offered by the Partnership. If this certification is selected by Purchaser, Purchaser also makes the additional representations, warranties and covenants listed in footnote 13 of this Annex C.[13] A "family company" means any company (including a trust, partnership, limited liability company or corporation) that is owned directly or indirectly by or for (a) two or more natural persons who are related as siblings, spouses or former spouses, or as direct lineal descendants by birth or adoption, or spouses of such persons, (b) estates of such persons, or (c) foundations, charitable organizations or trusts established by or for the benefit of such persons. *See Part IV of this Annex C for the definition of and method for calculating the value of "Investments."*

☑ Purchaser is an entity (other than a trust), each of the beneficial owners of which is a "qualified purchaser;" *provided*, that if this certification is selected, Purchaser makes the additional representations, warranties and covenants listed in footnote 14 of this Annex C.[14]

☐ Purchaser is a trust that was not formed for the specific purpose of acquiring securities in the Partnership, each trustee (or other person authorized to make decisions with respect to the trust) and each grantor (or other person who has contributed assets to the trust) of which are "qualified purchasers;" *provided*, that if this certification is selected, Purchaser makes the additional representations, warranties and covenants listed in footnote 15 of this Annex C.[15]

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[13] Purchaser hereby represents, warrants and covenants that Purchaser shall permit no direct or indirect changes in its beneficial ownership that at any time would result in the representation contained in the certification for "family companies" to not be true.

[14] Purchaser hereby represents, warrants and covenants with respect to each beneficial owner of Purchaser's securities (each, a "Beneficial Owner") that: (i) Purchaser is sufficiently familiar with each such Beneficial Owner's regulatory status and/or Investment ownership to make representations on each such Beneficial Owner's behalf; (ii) each such Beneficial Owner is sufficiently qualified in such Beneficial Owner's own right to make a direct investment in the Partnership under the requirements set forth in this Purchaser Questionnaire (i.e., as an "accredited investor," "qualified client" and "qualified purchaser," to the extent Purchaser meets any such qualification on its own right as indicated herein); (iii) the Partnership may rely on Purchaser's representations on behalf of each such Beneficial Owner hereunder to the same extent as if each such Beneficial Owner had completed this Purchaser Questionnaire; and (iv) Purchaser shall permit no direct or indirect changes in beneficial ownership in Purchaser that at any time would result in any of the representations contained in clauses (i) through (iii) above ceasing to be true.

[15] Purchaser hereby represents, warrants and covenants with respect to each trustee or other Person authorized to make decisions with respect to the trust, and each Person who has contributed assets to the trust (each, a "Trust Party") that: (i) Purchaser is sufficiently familiar with each such Trust Party's regulatory status and/or Investment ownership to make representations on each such Trust Party's behalf; (ii) each Trust Party qualifies as a "qualified purchaser" under one or more of the provisions of this Purchaser Questionnaire; (iii) the Partnership may rely on Purchaser's representations on behalf of each such Trust Party hereunder

☐ Purchaser is a qualified institutional buyer as defined in paragraph (a) of Section 230.144A(a) under the Code of Federal Regulations (the "CFR"), acting for its own account, the account of another qualified institutional buyer or the account of a qualified purchaser; *provided*, that: (a) a dealer described in paragraph (a)(1)(ii) of Section 230.144A of the CFR owns and invests on a discretionary basis at least $25 million in securities of issuers that are not affiliated persons of the dealer; and (b) a plan referred to in paragraph (a)(1)(i)(D) or (a)(1)(i)(E) of Section 230.144A of the CFR or a trust fund referred to in paragraph (a)(1)(i)(F) of Section 230.144A of the CFR that holds the assets of such a plan, will not be deemed to be acting for its own account if investment decisions with respect to the plan are made by the beneficiaries of the plan, except with respect to investment decisions made solely by the fiduciary, trustee or sponsor of such plan.

☐ Purchaser is NOT a "qualified purchaser," (as defined in Section 2(a)(51)(A) of the Investment Company Act and the regulations issued thereunder).

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to the same extent as if each such Trust Party had completed this Purchaser Questionnaire; and (iv) Purchaser shall permit no direct or indirect changes in the Trust Parties that at any time would result in any of the representations contained in clauses (i) through (iii) above ceasing to be true.

Part III

INVESTMENTS

For determining whether Purchaser is a "qualified purchaser," the term "Investments" means:

1. Securities (as defined in Section 2(a)(l) of the Securities Act), other than securities of an issuer that controls, is controlled by, or is under common control with, Purchaser that owns such securities, unless the issuer of such securities is a "public company," an "investment vehicle" or has more than $50,000,000 in equity, as reflected on such company's financial statements which present such equity information as of a date within 16 months preceding the date on which Purchaser acquires securities in the Partnership. The term "public company" includes all companies that file reports pursuant to Section 13 or 15(d) of the Exchange Act or have a class of securities that are listed on a Designated Offshore Securities Market, as defined in Regulation S promulgated under the Securities Act. The term "investment vehicle" includes a commodity pool or an "investment company" (whether U.S. or offshore) or a company required to register as such under the Investment Company Act but for the exclusions or exemptions provided by Sections 3(c)(l) through 3(c)(9) of the Investment Company Act;

2. Real estate held for investment purposes so long as it is not used by Purchaser or a close relative (generally, a sibling, spouse, former spouse, direct ancestor or descendent or a spouse of such an ancestor or descendent) for personal or business purposes; *provided*, that real estate owned by a Purchaser who is engaged primarily in the business of investing, trading or developing real estate in connection with such business may be deemed to be held for investment purposes.

3. "Commodity Interests" or "Physical Commodity" held for "investment purposes" by Purchaser. "Commodity Interests" means commodity futures contracts, options on commodity futures contracts, and options on physical commodities traded on or subject to the rules of (a) any contract market designated for trading such transactions under the U.S. Commodity Exchange Act of 1974, as amended (the "Commodity Exchange Act") and the rules thereunder, or (b) any board of trade or exchange outside the United States, as contemplated in Part 30 of the rules under the Commodity Exchange Act. "Physical Commodity" means any physical commodity with respect to which a "Commodity Interest" is traded on a market specified in the definition of Commodity Interests above. For purposes of this Section 3 and the below Section 4, a Commodity Interest or Physical Commodity owned, or a financial contract entered into, by a Purchaser who is engaged primarily in the business of investing, reinvesting, or trading in Commodity Interests, Physical Commodities or financial contracts in connection with such business may be deemed to be held for investment purposes;

4. To the extent not securities, "financial contracts" entered into for investment purposes or in connection with investments. "Financial contracts" means any arrangement that (a) takes the form of an individually negotiated contract, agreement, or option to buy, sell, lend, swap, or repurchase, or other similar individually negotiated transaction commonly entered into by participants in the financial markets; (b) is in respect of securities, commodities, currencies, interest or other rates, other measures of value, or any other financial or economic interest similar in purpose or function to any of the foregoing; and (c) is entered

into in response to a request from a counterparty for a quotation, or is otherwise entered into and structured to accommodate the objectives of the counterparty to such arrangement;

5. In the case of a Purchaser that is a commodity pool operator or an investment company excepted from registration by Section 3(c)(1) or Section 3(c)(7) of the Investment Company Act, any amounts payable to such Purchaser pursuant to a firm agreement or similar binding commitment pursuant to which a person has agreed to acquire an interest in, or make capital contributions to, Purchaser upon the demand of Purchaser; and

6. Cash and cash equivalents (including foreign currencies) held for investment purposes. "Cash and cash equivalents" include bank deposits, certificates of deposits, bankers acceptances and similar bank instruments held for investment purposes and the net cash surrender value of an insurance policy.

"Investments" do not include other assets which do not reflect experience in the financial markets, such as jewelry, art work, antiques and other collectibles.

For purposes of determining the amount of "Investments" owned by a company, "Investments" of a parent company and its majority-owned subsidiaries may be aggregated to meet the minimum "investment" amount requirements, regardless of which company is Purchaser.

For purposes of determining the amount of "Investments" owned by a natural person, there may be included any "investment" held jointly or as community property with such person's spouse. In determining whether spouses who are making a joint investment in the Partnership are qualified purchasers, there may be included in the amount of each spouse's "Investments" any "Investments" owned by the other spouse (whether or not such "investments" are held jointly).

In determining whether a natural person is a qualified purchaser, there may be included in the amount of such person's "Investments" any "Investments" held in an individual retirement account or similar account the investments of which are directed by and held for the benefit of such person.

VALUATION OF INVESTMENTS

In determining the value of "Investments" in order to ascertain qualified purchaser status, the aggregate amount of "Investments" owned and invested on a discretionary basis by such person shall be their fair market value on the most recent practicable date or their cost provided that the same method must be used for all "Investments." However,

1. In the case of "Commodity Interests," the amount of "Investments" is the value of the initial margin or option premium deposited in connection with such "Commodity Interests," and

2. In each case, there shall be deducted from the amount of such "Investments" the following amounts:

    a. The amount of any outstanding indebtedness incurred by Purchaser to acquire such "Investments," and

    b. In the case of a Family Company (as defined in Exhibit I of the Subscription Agreement), in addition to the amounts specified in paragraph 2(a) above, any outstanding indebtedness incurred by an owner of the Family Company to acquire the Family Company's "Investments."

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ANNEX D

ADVISERS ACT CERTIFICATIONS

PLEASE CHECK BELOW EACH AND EVERY STATEMENT THAT IS TRUE. Capitalized terms used but not defined in this Annex D shall have the respective meanings given to them in the Subscription Agreement.

1. Purchaser is a corporation, partnership, association, joint-stock company, trust, or any organized group of persons, whether incorporated or not (*provided*, that, if Purchaser is (1) a company that relies on Section 3(c)(1) of the Investment Company Act to avoid being deemed an investment company, (2) an investment company registered under the Investment Company Act, or (3) a business development company (as defined in Section 202(a)(22) of the Investment Advisers Act), then Purchaser makes the additional representations, warranties and covenants listed in footnote 16 of this Annex D) and Purchaser:[16]

   ☑ Has at least $1,100,000 under the management of the Manager.

   ☑ Has a net worth of more than $2,200,000.

   ☑ Is a qualified purchaser as defined in Section 2(a)(51)(A) of the Investment Company Act.

   ☐ Is an executive officer, director, trustee, general partner, employee or person serving in a similar capacity, of the Manager.

2. Purchaser is an individual (i.e., a natural person) who:

   ☐ Has at least $1,100,000 under the management of the Manager.

   ☐ Has a net worth (together, in the case of a natural person with assets held jointly with a spouse), excluding the value of such person's primary residence, of more than $2,200,000.

   ☐ Is a qualified purchaser as defined in Section 2(a)(51)(A) of the Investment Company Act.

   ☐ Is an executive officer, director, trustee, general partner, employee or person serving in a similar capacity, of the Manager. [**Note**: This option only applies to employees of EnCap Investments L.P. or its affiliates.]

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[16] Purchaser hereby represents, warrants and covenants with respect to each beneficial owner of Purchaser's securities (each, a "Beneficial Owner") that: (i) Purchaser is sufficiently familiar with each such Beneficial Owner's regulatory status and/or Investment ownership to make representations on each such Beneficial Owner's behalf; (ii) each such Beneficial Owner is a "qualified client" under the Investment Advisers Act; (iii) the Partnership may rely on Purchaser's representations on behalf of each such Beneficial Owner hereunder to the same extent as if each such Beneficial Owner had completed this Purchaser Questionnaire; and (iv) Purchaser shall permit no direct or indirect changes in beneficial ownership in Purchaser that at any time would result in any of the representations contained in clauses (i) through (iii) above ceasing to be true.

ANNEX E

ADDITIONAL CERTIFICATIONS

1. **Benefit Plan Matters.** Please check the statements below regarding Purchaser.

a. Purchaser is not and will not be, for so long as Purchaser holds a limited partner interest in the Partnership, a "***Benefit Plan Investor***" within the meaning of Section 3(42) of ERISA, including (i) an employee benefit plan subject to Part 4 of Subtitle B of Title I of ERISA, (ii) any plan to which Section 4975 of the Code applies, or (iii) an entity whose underlying assets include plan assets (within the meaning of Section 3(42) of ERISA) by reason of a plan's investment in the entity.

☑ True ☐ False

b. Purchaser is an "employee benefit plan" that is subject to Title I of ERISA.

☐ Yes ☑ No

c. Purchaser is a "plan" that is subject to Section 4975 of the Code.

☐ Yes ☑ No

d. Purchaser is an insurance company general account.

☐ Yes ☑ No

If "Yes," do the underlying assets of Purchaser include the "plan assets" of one or more Benefit Plan Investors that are subject to ERISA or Section 4975 of the Code?

☐ Yes ☐ No

If "Yes," Purchaser represents, warrants and covenants that, for so long as it holds an Interest, the percentage of Purchaser's assets that may be held by Benefit Plan Investors shall not exceed _________%.

e. Purchaser is an entity described in 29 CFR § 2510.3-101(h), including a group trust which is exempt from taxation pursuant to the principles of Rev. Ruling 81-100; a common or collective trust fund of a bank; or an insurance company separate account (other than a separate account that is maintained solely in connection with fixed contractual obligations of the insurance company under which the amounts payable, or credited, to the plan and to any participant or beneficiary of the plan are not affected in any manner by the investment performance of the separate account).

☐ Yes ☑ No

If "Yes," do the underlying assets of Purchaser include the "plan assets" of one or more Benefit Plan Investors that are subject to ERISA or Section 4975 of the Code?

☐ Yes ☐ No

f. Purchaser is an entity, account or other pooled investment fund other than one described in items (d) or (e), above, such as a fund of funds, the underlying assets of which are (or may in the future be (e.g., because of future fundraising)) deemed to include "plan assets" of any "employee benefit plan" subject to ERISA or "plan" subject to Section 4975 of the Code.

☐ Yes ☑ No

If "Yes," Purchaser represents, warrants and covenants that, for so long as it holds an Interest, the percentage of Purchaser's assets that may be held by Benefit Plan Investors shall not exceed _________%.

g. Purchaser is a U.S. "governmental plan" within the meaning of Section 3(32) of ERISA.

☐ Yes ☑ No

h. Purchaser is a U.S. "church plan" within the meaning of Section 3(33) of ERISA.

☐ Yes ☑ No

If "Yes," has Purchaser elected to be subject to ERISA?

☐ Yes ☐ No

i. Purchaser is a non-U.S. plan (established and maintained outside of the United States primarily for the benefit of individuals substantially all of whom are non-residents of the United States).

☐ Yes ☑ No

j. Does Purchaser, or any Affiliate of Purchaser, have discretionary authority or control with respect to the assets of the Partnership or provide investment advice for a fee (direct or indirect) with respect to such assets?

☐ Yes ☑ No

2. **Fund of Funds.** Please check the statement below that describes Purchaser.

a. Purchaser is a "fund of funds."[17]

☐ Yes ☑ No

If the answer is "Yes," please answer Question 2(b) below. If the answer is "No," please skip to Question 3.

b. Has Purchaser completed its fundraising?

☐ Yes ☐ No

If the answer to 2(b) is "No," please answer Question 2(c) below. If the answer is "Yes," please skip to Question 3.

c. Does Purchaser have protections in place to ensure that it does not become a Benefit Plan Investor in the future?

☐ Yes ☐ No

3. **Government Plans, Agencies or Units**. Is Purchaser entitled to assert sovereign immunity or a similar defense against the enforcement of its obligations under the Subscription Agreement or the Partnership Agreement?

☐ Yes ☑ No

4. **FOIA**. Is Purchaser subject to the Freedom of Information Act, 5 U.S.C. § 552 ("***FOIA***"), any state public records access laws, any state or other jurisdiction's laws similar in intent or effect to the FOIA, or any other similar statutory or legal right that might result in the disclosure of confidential information relating to the Partnership?

☐ Yes ☑ No

If "Yes," please indicate the relevant laws to which Purchaser is subject and provide any additional explanatory information in the space below:

____
____
____
____

[17] For purposes of this item, "fund of funds" means a pooled investment vehicle that invests 10 percent (10%) or more of its total assets in other pooled investment vehicles, whether or not they are private funds or registered investment companies.

5. **CFIUS Foreign Person Status**.

a. Is the Purchaser a "foreign person"[18] or a "foreign entity,"[19] as defined in Section 721 of the Defense Production Act of 1950, including all implementing regulations thereof (the "***DPA***")?

☐ Yes ☑ No

b. Does the Purchaser permit any foreign person affiliated with the Purchaser, whether affiliated as a limited partner or otherwise, to obtain any of the following with respect to the Purchaser?

i. Access to any "material nonpublic technical information"[20] (as defined in the DPA) in the possession of the Purchaser;

☐ Yes ☑ No

ii. Membership or observer rights on the board of directors or equivalent governing body of Purchaser or the right to nominate an individual to a position on the board of directors or equivalent governing body of Purchaser;

☐ Yes ☑ No

iii. Any involvement, other than through the voting of shares or other form of equity, in the substantive decision-making of Purchaser regarding:

1. the use, development, acquisition or release of any "critical technology"[21] (as defined in the DPA);

[18] Any foreign national, foreign government or foreign entity; or any entity over which control is exercised or exercisable by a foreign national, foreign government or foreign entity. Any entity over which control is exercised or exercisable by a foreign person is a foreign person.
[19] Any branch, partnership, group or sub-group, association, estate, trust, corporation or division of a corporation or organization organized under the laws of a foreign state if either its principal place of business is outside the United States or its equity securities are primarily traded on one or more foreign exchanges.
[20] Information that (i) provides knowledge, know-how or understanding, in each case not available in the public domain, of the design, location or operation of covered investment critical infrastructure, including vulnerability information such as that related to physical security or cybersecurity; or (ii) is not available in the public domain and is necessary to design, fabricate, develop, test, produce or manufacture a critical technology, including processes, techniques or methods. "Material nonpublic technical information" does not include financial information regarding the performance of an entity.
[21] (i) Defense articles or defense services included on the United States Munitions List (USML) set forth in the International Traffic in Arms Regulations (ITAR); (ii) items excluded on the Commerce Control List (CCL) set forth in Supplement No. 1 to part 774 of the Export Administration Regulations (EAR), and controlled (A) pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation or missile technology or (B) for reasons relating to regional stability or surreptitious listening; (iii) specifically designed and prepared nuclear equipment, parts and components, materials, software and technology covered by 10 CFR part 810 (relating to assistance to foreign atomic activities); (iv) nuclear facilities, equipment and material covered by 10 CFR part 110 (relating to export and import of nuclear equipment and material); (v) select agents and toxins covered by 7 CFR part 331, 9 CFR part 121 or 42 CFR part 73; and (vi) emerging and foundational technologies controlled under section 1758 of the Export Control Reform Act of 2018.

2. the use, development, acquisition, safekeeping or release of "sensitive personal data"[22] (as defined in the DPA) of U.S. citizens maintained or collected by Purchaser; or

3. the management, operation, manufacture or supply of "covered investment critical infrastructure"[23] (as defined in the DPA); or

☐ Yes ☑ No

iv. "Control"[24] of Purchaser (as defined in the DPA).

☐ Yes ☑ No

[22] (1) Identifiable data that is (i) maintained or collected by a U.S. business that (A) targets or tailors products or services to any U.S. executive branch agency or military department with intelligence, national security, or homeland security responsibilities, or to personnel and contractors thereof; (B) has maintained or collected any identifiable data within one or more categories described below on greater than one million individuals at any point in certain time period further described in the DPA, unless the U.S. business can demonstrate that it had or will have neither the capability to maintain nor the capability to collect any identifiable data within one or more categories described below on greater than one million individuals; or (C) has a demonstrated business objective to maintain or collect any identifiable data within one or more categories described below on greater than one million individuals and such data is an integrated part of the U.S. business's primary products or services; and (ii) within any of the following categories: (A) financial data that could be used to analyze or determine an individual's financial distress or hardship; (B) the set of data in a consumer report, as defined under 15 U.S.C. 1681a, unless such data is obtained from a consumer reporting agency for one or more purposes identified in 15 U.S.C. 1681b(a) and such data is not substantially similar to the full contents of a consumer file as defined under 15 U.S.C. 1681a; (C) the set of data in an application for health insurance, long-term care insurance, professional liability insurance, mortgage insurance, or life insurance; (D) data relating to the physical, mental or psychological health condition of an individual; (E) non-public electronic communications, including email, messaging, or chat communications, between or among users of a U.S. business's products or services if a primary purpose of such product or service is to facilitate third-party user communications; (F) geolocation data collected using positioning systems, cell phone towers, or WiFi access points such as via a mobile application, vehicle GPS, other onboard mapping tool, or wearable electronic device; (G) biometric enrollment data including facial, voice, retina/iris, and palm/fingerprint templates; (H) data stored and processed for generating a state or federal government identification card; (I) data concerning U.S. government personnel security clearance status; or (J) the set of data in an application for a U.S. Government personnel security clearance or an application for employment in a position of public trust; and (2) the results of an individual's genetic tests, including any related genetic sequencing data, whenever such results constitute identifiable data. Such results shall not include data derived from databases maintained by the U.S. government and routinely provided to private parties for purposes of research.

[23] The systems and assets, whether physical or virtual, set forth in column 1 of Appendix A to 31 CFR part 800.

[24] The power, direct or indirect, whether or not exercised, through the ownership of a majority or a dominant minority of the total outstanding voting interest in an entity, board representation, proxy voting, a special share, contractual arrangements, formal or informal arrangements to act in concert, or other means, to determine, direct, or decide important matters affecting an entity; in particular, but without limitation, to determine, direct, take, reach, or cause decisions regarding the following matters, or any other similarly important matters affecting an entity: (i) the sale, lease, mortgage, pledge, or other transfer of any of the tangible or intangible principal assets of the entity, whether or not in the ordinary course of business; (ii) the reorganization, merger, or dissolution of the entity; (iii) the closing, relocation, or substantial alteration of the production, operational, or research and development facilities of the entity; (iv) major expenditures or investments, issuances of equity or debt, or dividend payments by the entity, or approval of the operating budget of the entity; (v) the selection of new business lines or ventures that the entity will pursue; (vi) the entry into, termination, or non-fulfillment by the entity of significant contracts; (vii) the policies or procedures of the entity governing the treatment of non-public technical, financial, or other proprietary information of the entity; (viii) the appointment or dismissal of officers or senior managers or, in the case of a partnership, the general partner; (ix) the appointment or dismissal of employees with access to critical technology or other sensitive technology or classified U.S. Government information; or (x) the amendment of the articles of incorporation, constituent agreement, or other organizational documents of the entity with respect to the matters described above.

ANNEX F

RULE 506(d) CERTIFICATION

1. Has Purchaser[25] been convicted, within ten years before date first written above, of any felony or misdemeanor (i) in connection with the purchase or sale of any security, (ii) involving the making of any false filing with the U.S. Securities and Exchange Commission (the "***SEC***") or (iii) arising out of the conduct of the business of an underwriter, broker, dealer, municipal securities dealer, investment adviser or paid solicitor of purchasers of securities?

   ☐ Yes ☑ No

2. Is Purchaser subject to any order, judgment or decree of any court of competent jurisdiction entered within five years of the date hereof that presently restrains or enjoins Purchaser from engaging or continuing to engage in any conduct or practice (i) in connection with the purchase or sale of any security, (ii) involving the making of any false filing with the SEC or (iii) arising out of the conduct of the business of an underwriter, broker, dealer, municipal securities dealer, investment adviser or paid solicitor of purchasers of securities?

   ☐ Yes ☑ No

3. Is Purchaser subject to a final order[26] of a state securities commission (or an agency or officer of a state performing like functions); a state authority that supervises or examines banks, savings associations or credit unions; a state insurance commission (or an agency or officer of a state performing like functions); an appropriate federal banking agency; the U.S. Commodity Futures Trading Commission; or the National Credit Union Administration that (i) as of the date hereof, bars Purchaser from (A) association with an entity regulated by such commission, authority, agency or officer, (B) engaging in the business of securities, insurance or banking or (C) engaging in savings association or credit union activities or (ii) constitutes a final order based on a violation of any law or regulation that prohibits fraudulent, manipulative or deceptive conduct entered within ten years of the date hereof?

   ☐ Yes ☑ No

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[25] For the purposes of Annex F, references to "Purchaser" shall include any Person whose interest in, or relationship to, Purchaser is deemed to make such Person a beneficial owner of the Partnership's voting securities under Exchange Act Rule 13d-3 and within the meaning of Rule 506(d). Under Rule 13d-3, a Person is a beneficial owner of a security if, for among other reasons, such Person directly or indirectly has or shares (a) the power to vote or to direct the voting of such security and/or (b) the power to dispose of or direct the disposition of such security.

[26] A "final order" is a written directive or declaratory statement issued by a federal or state agency described in Rule 506(d)(1)(iii) under the Securities Act under applicable statutory authority that provides for notice and an opportunity for a hearing, which constitutes a final disposition or action by that federal or state agency.

4. Is Purchaser subject to any order of the SEC pursuant to Section 15(b) or 15B(c) of the Exchange Act or Section 203(e) or (f) of the Investment Advisers Act that as of the date hereof (i) suspends or revokes Purchaser's registration as a broker, dealer, municipal securities dealer or investment adviser, (ii) places limitations on the activities, functions or operations of Purchaser or (iii) bars Purchaser from being associated with any entity or from participating in the offering of any penny stock?

☐ Yes ☑ No

5. Is Purchaser subject to any order of the SEC entered within five years of the date hereof that presently orders Purchaser to cease and desist from committing or causing a violation or future violation of (i) any scienter based anti-fraud provision of the federal securities laws or (ii) Section 5 of the Securities Act?

☐ Yes ☑ No

6. Is Purchaser, as of the date hereof, suspended or expelled from membership in, or suspended or barred from association with a member of, a registered national securities exchange or a registered national or affiliated securities association for any act or omission to act constituting conduct inconsistent with just and equitable principles of trade?

☐ Yes ☑ No

7. Has Purchaser filed (as a registrant or issuer), or was Purchaser an underwriter or named as an underwriter in, any registration statement or Regulation A offering statement filed with the SEC that, within five years of the date hereof, was the subject of a refusal order, stop order or order suspending the Regulation A exemption, or is presently the subject of an investigation or proceeding to determine whether a stop order or suspension order should be issued?

☐ Yes ☑ No

8. Is Purchaser subject to a United States Postal Service false representation order entered within five years of the date hereof or is presently subject to a temporary restraining order or preliminary injunction with respect to conduct alleged by the United States Postal Service to constitute a scheme or device for obtaining money or property through the mail by means of false representations?

☐ Yes ☑ No

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ANNEX G

ANTI-MONEY LAUNDERING DOCUMENTATION REQUIREMENTS

Please provide the following documentation:

1. For Purchasers that are Individuals: Individuals must provide a current (*i.e.*, non-expired) notarized copy of a passport or a driver's license with Purchaser's full name, date of birth, photograph and their country of citizenship, together with a certified copy of documentary evidence of Purchaser's permanent residential address.

2. For Purchasers that are Corporations: Corporations must provide (i) a certified copy of the certificate of incorporation or other information identifying the place of incorporation, (ii) a certified copy of the memorandum and articles of association, by-laws or equivalent, (iii) anti-money laundering documentation for all directors and (iv) anti-money laundering documentation for each 10% or greater Beneficial Owner as defined in the Purchaser Questionnaire (*i.e.*, holders of 10% or more of the shares of the corporation). For each of the persons or entities described in subsections (iii)-(iv) above, corporations must provide the documentation described in the applicable Paragraph of these Anti-Money Laundering Documentation Requirements for such person or entity. For example, if the person or entity is an individual, please provide the documentation requested in Paragraph 1 above; if the person or entity is a partnership, please provide the documentation requested in Paragraph 3 below, and so forth.

3. For Purchasers that are Partnerships: Partnerships must provide (i) a certified copy of the certificate of formation or other information identifying the place of formation, (ii) a certified copy of the partnership's agreement of limited partnership or similar operating agreement, (iii) anti-money laundering documentation for the partnership's general partner, (iv) anti-money laundering documentation for the general partner's ultimate owners and control persons and (v) anti-money laundering documentation for the partnership's and its general partner's 10% or greater Beneficial Owners (*i.e.*, holders of 10% or more of the partnership's limited partnership interests). For each of the persons or entities described in subsections (iii)-(v) above, partnerships must provide the documentation described in the applicable Paragraph of these Anti-Money Laundering Documentation Requirements for such person or entity. For example, if the person or entity is an individual, please provide the documentation requested in Paragraph 1 above; if the person or entity is a limited liability company, please provide the documentation requested in Paragraph 4 below, and so forth.

4. For Purchasers that are Limited Liability Companies: Limited liability companies must provide (i) a certified copy of the certificate of formation or other information identifying the place of formation, (ii) a certified copy of the limited liability company's operating agreement, (iii) anti-money laundering documentation for the limited liability company's manager(s) or control persons, (iv) anti-money laundering documentation for the manager(s) ultimate owners and control persons and (v) anti-money laundering documentation for the limited liability company's and its manager's 10% or greater Beneficial Owners (*i.e.*, holders of more than 10% of a limited liability company's

membership interests). For each of the persons or entities described in subsections (iii)-(v) above, limited liability companies must provide the documentation described in the applicable Paragraph of these Anti-Money Laundering Documentation Requirements for such person or entity. For example, if the person or entity is an individual, please provide the documentation requested in Paragraph 1 above; if the person or entity is a partnership, please provide the documentation requested in Paragraph 3 above, and so forth.

5. For Purchasers that are Trusts: Trusts must provide (i) a certified copy of the trust's trust agreement or similar governing document and (ii) anti-money laundering documentation for the trust's settlor and/or grantor, trustees and beneficiaries. For each of the persons or entities described in subsection (ii) above, the trust must provide the documentation described in the applicable Paragraph of these Anti-Money Laundering Documentation Requirements for such person or entity. For example, if the person or entity is an individual, please provide the documentation requested in Paragraph 1 above; if the person or entity is a partnership, please provide the documentation requested in Paragraph 3 above, and so forth.

Purchasers may be requested to furnish other or additional documentation evidencing the authority to invest in the Partnership. **NOTE**: All copy documents must be certified by a suitable certifier, which includes such professionals as an attorney, accountant, notary public, judge, senior civil servant, government official or director or manager of a regulated credit or financial institution. The certifier should provide their name, signature, title, employer name or occupation and the date of certification. Preferably the certification should also read as "This document is certified by me as a true and accurate copy of the original."

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ANNEX H

INCUMBENCY CERTIFICATE

Name of Purchaser: ________________________("***Purchaser***")

The undersigned, ___________________ (*name of officer signing this certificate)*, hereby certifies that he/she is a duly elected, qualified and acting officer of Purchaser, and on behalf of Purchaser, hereby further certifies as follows in connection with the execution by Purchaser of that certain Subscription Agreement submitted to EnCap Energy Capital Fund XII (the "***Fund***"), that certain Purchaser Questionnaire of the Fund, any limited partnership agreement of the Fund and any and all other documents of the Fund (together, the "***Fund Documents***"):

1. Each of the individuals below is a duly elected, qualified and acting officer of Purchaser with the title set forth opposite such individual's name below, and the signature appearing opposite such officer's name is such officer's genuine signature. Each such officer is duly authorized to execute and deliver, on behalf of Purchaser, the Fund Documents, any limited partnership agreement of the Fund and any and all other Fund documents.

Name	Title	Signature
______________________	______________________	______________________
______________________	______________________	______________________
______________________	______________________	______________________

2. All information in this certificate is true, correct and complete on and as of the date hereof.

IN WITNESS WHEREOF, the undersigned has executed this certificate as of the ___ day of _________________, ______.

____

Name:_________________________________

Title:_________________________________

NOTE: The signatory to this certificate should not be the signatory to the Fund Documents. The signatory to the Fund Documents must be listed in Section 1 of this certificate as an officer authorized to sign such Fund Documents, and this certificate must be signed by a different officer of Purchaser.

ANNEX I

WIRING INSTRUCTIONS FOR PURCHASER

PAYMENT OF DISTRIBUTION PROCEEDS

Purchaser agrees that any and all funds payable to Purchaser (including the cash proceeds of all distributions related to the Interest) may be remitted to Purchaser by wire transfer, in accordance with the following instructions. In the event any of the information below changes, Purchaser agrees to provide the General Partner with written notice of such change, signed by one or more of the individuals authorized to act on behalf of Purchaser. Finally, Purchaser agrees and confirms that the General Partner, in its sole discretion, may request to have Purchaser's bank complete and send written correspondence to the General Partner affirming account ownership. A complete bank address and country must be supplied.

Name of Bank: Citibank NYC

Address of Bank: 111 Wall St., New York, NY 10005

ABA Number: 021000089

Account Number: 40611172

Name Under Which Account is Held: Morgan Stanley Smith Barney LLC

FFC Information or Additional Reference (if necessary):

Account Name: Stone Garden Holdings LP

Account Number: 235-094442

For International Purchasers:

IBAN: ______

SWIFT Code: ______

Sort Code: ______

Intermediary Bank Information:

Name of Bank: ______

Address of Bank: ______

ABA Number: ______

ANNEX J

CONTACT INFORMATION SHEET

Please provide the contact information for Purchaser and indicate with a "✓" each document type each contact should receive.

Contact:	Contact Permissions:
Name: Zachary Matula	☑ Capital Calls
Email Address: zach@stonegardengroup.com	☑ Distribution Notices
Phone Number: 281-615-1446	☑ Financial Statements
Company: Stone Garden Group LLC	☑ Legal Notices
Address: 1885 Saint James Place, Suite 710, Houston, TX 77056	☑ Tax Documents

Contact:	Contact Permissions:
Name: Clayton Marcelle	☑ Capital Calls
Email Address: clayton@stonegardengroup.com	☑ Distribution Notices
Phone Number: 281-658-6886	☑ Financial Statements
Company: Stone Garden Group LLC	☑ Legal Notices
Address: 1885 Saint James Place, Suite 710, Houston, TX 77056	☑ Tax Documents

Contact:	Contact Permissions:
Name: Sam Levens	☑ Capital Calls
Email Address: sam@stonegardengroup.com	☑ Distribution Notices
Phone Number: 817-235-8174	☑ Financial Statements
Company: Stone Garden Group LLC	☑ Legal Notices
Address: 1885 Saint James Place, Suite 710, Houston, TX 77056	☑ Tax Documents

Contact:	Contact Permissions:
Name: Andrew Luong	☑ Capital Calls
Email Address: andrew@stonegardengroup.com	☑ Distribution Notices
Phone Number: 281-704-9395	☑ Financial Statements
Company: Stone Garden Group LLC	☑ Legal Notices
Address: 1885 Saint James Place, Suite 710, Houston, TX 77056	☑ Tax Documents

Contact:	Contact Permissions:
Name:__________	☐ Capital Calls
Email Address:__________	☐ Distribution Notices
Phone Number:__________	☐ Financial Statements
Company:__________	☐ Legal Notices
Address:__________	☐ Tax Documents

ANNEX K

FORM PF CERTIFICATION

Form PF.

To enable the General Partner to complete Form PF as required by the Securities and Exchange Commission, please indicate which one of the following categories best describes the Purchaser. Please check only one option.

☑ An individual that is a U.S. person (including his or her trusts)[27]

☐ An individual that is not a U.S. person (including his or her trusts)

☐ A broker/dealer

☐ An insurance company

☐ An investment company registered with the SEC

☐ A private fund[28]

☐ A nonprofit

☐ A pension plan (excluding governmental pension plans)

☐ A banking or thrift institution (proprietary)

☐ A state or municipal government entity[29] (excluding governmental pension plans)

☐ A state or municipal governmental pension plan

☐ A sovereign wealth fund or foreign official institution

☐ Other (please specify): ________________________________

[27] "U.S. person" for purposes of this Annex K has the meaning of "U.S. person" as defined in Rule 902(k) of Regulation S under the Securities Act, except that any discretionary account or similar account that is held for the benefit of a U.S. person by a dealer or other professional fiduciary is a U.S. person if the dealer or professional fiduciary is a related person of an investment adviser relying on Rule 203(m)-1 of the Advisers Act and is not organized, incorporated, or (if an individual) resident in the United States.
[28] "Private Fund" for purposes of this Annex K means any issuer that would be an investment company as defined in Section 3 of the 1940 Act but for Section 3(c)(1) or 3(c)(7) thereof.
[29] "Government Entity" for purposes of this Annex K means any state or political subdivision of a state, including (i) any agency, authority or instrumentality of the state or political subdivision, (ii) a plan or pool of assets controlled by the state or political subdivision or any agency, authority, or instrumentality thereof and (iii) any officer, agent, or employee of the state or political subdivision or any agency, authority, or instrumentality thereof, acting in their official capacity.

ANNEX L

TAX FORM

Please use the links below to access the current version of the Tax Form applicable to Purchaser. Complete and sign the appropriate Tax Form and return it with the Purchaser Questionnaire. Do not send your completed Tax Form to the IRS. Please use a handwritten signature and not an electronic signature for this Form.

The Tax Form submitted with the Purchaser Questionnaire will be integrated with Purchaser's Purchaser Questionnaire and considered a part thereof for all purposes (including for purposes of the representations and warranties set forth in the Subscription Agreement).

1. Form W-9: https://www.irs.gov/pub/irs-pdf/fw9.pdf
2. Form W-8BEN: https://www.irs.gov/pub/irs-pdf/fw8ben.pdf
3. Form W-8BEN-E: https://www.irs.gov/pub/irs-pdf/fw8bene.pdf
4. Form W-8EXP: https://www.irs.gov/pub/irs-pdf/fw8exp.pdf
5. Form W-8IMY: https://www.irs.gov/pub/irs-pdf/fw8imy.pdf
6. Form W-8ECI: https://www.irs.gov/pub/irs-pdf/fw8eci.pdf

ANNEX M

CONSENT FORM FOR PURCHASER TO RECEIVE SCHEDULE K-1 ELECTRONICALLY

Purchasers must consent to receive their Schedules K-1 electronically through the FIS Digital Data Exchange portal by completing and returning a consent form (as provided below) by mail or electronic mail ("email") as part of this Purchaser Questionnaire. **There is no consent necessary if Purchaser wishes only to receive a hard copy of Schedule K-1.**

The undersigned affirmatively consents to receive Schedule K-1 (Form 1065) information related to his/her investment in the Partnership.

In addition, the undersigned is aware of the following:

1. If a Purchaser does not consent to receive the above information electronically, the Schedule K-1 information will be furnished on paper.

2. This consent applies to each Schedule K-1 required to be furnished from the Partnership after the consent is given until it is withdrawn.

3. Purchaser will provide current contact information and will notify the Partnership of any updated contact information.

4. A later request by Purchaser for a paper Schedule K-1 may be submitted to the Partnership (electronically or on paper) at the address listed below. Unless Purchaser withdraws its consent (as described below), such request will not terminate the consent to receive Schedule K-1 information electronically.

5. Purchaser may withdraw consent by sending electronic or paper notification to the Partnership at the address listed below.

   EnCap Equity Fund XII GP, L.P.
   Attn: Tax Department
   9651 Katy Freeway, Suite 600
   Houston, Texas 77024
   tax@encapinvestments.com; MStandley@encapinvestments.com

6. A withdrawal of consent takes effect on the date received by the Partnership either by mail or electronically.

7. Purchaser will receive a confirmation of withdrawal from the Partnership and the date on which it takes effect in writing either electronically or on paper.

8. A withdrawal of consent does not apply to a statement that was furnished electronically to the Partnership before the date on which the withdrawal of consent takes effect.

9. The Partnership will cease to furnish electronic Schedules K-1 should Purchaser withdraw from the Partnership or no longer hold any interest in the Partnership.

10. The Partnership will not furnish electronic Schedule K-1s as described herein to Purchaser if the Partnership does not adopt, or ceases to maintain, a program of providing Schedule K-1s to consenting Purchasers in the manner described above. In the event the Partnership changes the manner in which it delivers electronic Schedule K-1s, the Partnership intends to offer Purchaser the opportunity to consent to such new electronic delivery method.

11. The Partnership will inform Purchaser of any change in the Partnership's address and/or contact information.

12. Purchaser's Schedule K-1 will be delivered electronically through the FIS Digital Data Exchange portal. When Purchaser's K-1 has been made available in FIS Digital Data Exchange, an email will be sent to Purchaser with the subject line "IMPORTANT TAX RETURN DOCUMENT AVAILABLE" or other similar wording. In order to access and retain the Schedule K-1, Purchaser will need an email address, Internet Explorer, or some other software for accessing the Internet, and Adobe Acrobat Reader (or other software capable of viewing and saving PDF files) to view the PDF file format and save the PDF file. In order to print and retain a hardcopy of the Schedule K-1, Purchaser will need access to a printer. Purchaser's Schedule K-1 will remain available in the FIS Digital Data Exchange portal for the life of the Partnership. Purchaser may be required to print Schedule K-1 and attach it to Purchaser's federal, state or local tax return.

13. Please choose one:

- ☑ Purchaser consents to electronic delivery of its Schedule K-1 as described above.
- ☐ Purchaser consents to electronic delivery of its Schedule K-1 as described above, **<u>and</u>** Purchaser also requests delivery of its Schedule K-1 by paper.
- ☐ Purchaser does not consent to electronic delivery of its Schedule K-1.
- ☐ Purchaser hereby withdraws its prior consent to electronic delivery of its Schedule K-1.

14. Please include the following:

Purchaser's Tax Identification Number: 99-2610490

Purchaser's Email Address: andrew@stonegardengroup.com

Purchaser's Address: 1885 Saint James Place, Suite 710
Houston, TX 77056

15. Please complete and sign below.

Stone Garden Holdings, LP	09/25/2024
Print Name of Purchaser	Date
	zach@stonegardengroup.com
By: Signature of Authorized Signatory	Email
Zachary Matula	
Print Name of Authorized Signatory	
Manager of General Partner	
Print Title of Authorized Signatory	

This consent form is required to be completed by all Purchasers who wish to receive their Schedule K-1 information electronically. The form must be signed and returned to us before we can electronically remit any information to Purchaser. If requested by the Partnership, Purchaser agrees to confirm the consent granted hereunder electronically and to otherwise demonstrate to the Partnership's reasonable satisfaction that Purchaser can access the Schedule K-1 in the electronic format in which it will be furnished by the Partnership.

ANNEX N

PRIVACY NOTICE

ENCAP INVESTMENTS L.P. AND ITS AFFILIATED ENTITIES

Effective Date: June 8, 2020

Our Commitment to Your Privacy

EnCap Investments L.P. and its affiliates (together, "EnCap," "our," "us" or "we") recognize and respect your right to privacy, and we are committed to managing information responsibly. We are providing this privacy notice (this "Privacy Notice") to help you better understand the type of information we collect and how and why we collect or share such information as well as inform you of your rights and choices about the use of your information. This Privacy Notice governs how we collect, use and share your Personal Information. If you do not agree with this Privacy Notice, please do not provide us any Personal Information.

This Privacy Notice should be read in conjunction with other documents provided by us, as such documentation may include sections relating to the use and disclosure of information. Where a conflict exists between the terms of this Privacy Notice and any other document in relation to data protection, the terms of this Privacy Notice shall prevail (although the contents of this Privacy Notice are not contractual). The policy described in this Privacy Notice continues to apply even if your relationship with us ends.

This Privacy Notice does not apply to any information collected by EnCap other than Personal Information collected from the sources discussed below. This Privacy Notice also does not apply to information about businesses or other non-individuals. EnCap reserves the right to use and disclose aggregated and deidentified information for any commercially reasonable purpose.

Types of Personal Information We Collect

"Personal Information" is information that reasonably allows us to identify you or your household. We collect Personal Information you voluntarily provide, including when you contact us by phone or email or engage in a financial transaction with us or a Fund (as defined herein). Such Personal Information may include your name, email, and any other information you voluntarily share with us in such interactions. We have collected these categories of Personal Information for at least the last 12 months. We have grouped together the categories of Personal Information to more easily explain how we use this information. Here are the types of Personal Information we collect about you and your beneficiaries:

(a) "Personal Identifiers," including first and last name, date of birth, social security number, gender, occupation, citizenship and marital status, birthplace, and driver's license, passport number, or state identification card number;

(b) "Contact Information," including email address(es), mailing address(es), phone number(s); and

(c) "Financial Information," including income level and/or assets, risk tolerance, transaction history, investment experience and activity, information regarding a potential and/or actual investment in one or more of our private investment funds (each, a "Fund") (including ownership percentage, capital investment, income and losses, source of funds used to make an investment in a Fund), salary information, sources of income and investment funds, criminal history, details relating to immediate family members or senior political figures to whom you may be connected, investment experience or activity and your status under various laws and regulations, including tax status.

Sources of Personal Information

We collect and maintain Personal Information about you from the following sources:

(a) Communications with you, including over the telephone, in voicemails, through written materials and via e-mail and other electronic communications;

(b) Subscription agreements, purchaser questionnaires, applications or other forms or agreements (including any anti-money laundering, identification, and verification documentation);

(c) Your account history, including capital contributions and withdrawals;

(d) Our website, any Fund data room, and any investor reporting portal (as applicable) (collectively the "Websites"); and

(e) Third-party providers who assist us in combating fraud, money laundering, regulatory violations, and other crimes or bad acts.

Disclosure of Personal Information

We may disclose the Personal Information described above to certain third parties as authorized by you or as permitted or required by law or regulation. More specifically, we may share Personal Information where:

(a) It is necessary to comply with our contractual obligations or with your instructions;

(b) We have a public or legal duty to do so (for example, to assist with detecting and preventing fraud, tax evasion and financial crime or compliance with a court order);

(c) We are obligated to in connection with regulatory reporting, litigation or asserting or defending legal rights and interests;

(d) A Fund has a legitimate business reason for doing so (for example, to manage risk, verify identity, enable another business to provide you with services you've requested, or assess your suitability for investing in such Fund);

(e) Needed to allow us to provide you with necessary or useful services with respect to your investment, for example sharing with affiliates and service providers, including administrators, lenders, banks, auditors, tax preparers, law firms, governmental agencies, self-regulatory organizations, consultants and placement agents; and

(f) We have asked you if we can share it, and you gave consent.

Information Security

We consider the protection of sensitive information to be a sound business practice, and to that end we employ appropriate technological and organizational measures, as well as physical, electronic and procedural safeguards that seek to protect your non-public Personal Information in our possession or under our control, including limiting access to your information to those who need access to such information in connection with the formation and operation of the Funds. However, no method of transmission or storage of data is 100% secure and we will not be responsible for any damage that results from a security breach of data or the unauthorized access to or use of information. To the extent we provide your Personal Information to any third parties, we will request that they use reasonable security measures to protect your information.

Children's Personal Information

Please note that we do not knowingly collect Personal Information relating to children. If we learn we have received Personal Information from a child under 13 without verified parental consent, we will endeavor to delete that information.

Our Retention Policies

Personal data may be kept for as long as it is required for legitimate business purposes, to perform contractual obligations, or where longer, such longer period as is required by applicable legal or regulatory obligations. Personal data will be retained throughout the life cycle of any investment in a Fund. Some personal data will be retained after you cease to be an investor in a Fund.

We may be allowed to retain Personal Information for a longer period if you have given consent to such processing, as long as such consent is not withdrawn. Furthermore, we may be obliged to retain Personal Information for a longer period whenever required to do so for the performance of a legal obligation or upon order of an authority.

Once the retention period expires, Personal Information will be deleted.

Updates and Revisions

We may periodically revise our Privacy Notice and, to the extent required by law, will provide you with a revised policy and/or a periodic reminder of the terms of our privacy policy. We will not, however, revise our Privacy Notice to permit the sharing of non-public personal information other than as described herein unless we first notify you and provide you with an opportunity to prevent the information sharing.

This Privacy Notice, together with all supplemental privacy notices, complies with the privacy provisions of Regulation S-P under the Gramm-Leach-Bliley Act and certain privacy provisions of other laws. You may have additional rights under other foreign or domestic laws that apply to you, including as set forth in our supplemental privacy notices. This Privacy Notice replaces any earlier version.

How to Contact Us

For any questions or concerns about this Privacy Notice or to make a request regarding your Personal Information, please call, toll-free 1-833-659-6100, contact us via email at CFriou@encapinvestments.com, or write to us at:

EnCap Investments
Attn: Craig Friou
9651 Katy Freeway, Suite 600
Houston, Texas 77024

CALIFORNIA PRIVACY NOTICE SUPPLEMENT

If you are a California resident, then you also have the following rights under the California Consumer Privacy Act ("CCPA") regarding your Personal Information. The California Consumer Privacy Act of 2018 ("CCPA") exempts information that is collected, processed, sold, or disclosed pursuant to the federal Gramm-Leach-Bliley Act ("GLBA"), and its implementing regulations, or the California Financial Information Privacy Act.

Right to Know

You have the right to know and see what Personal Information we have collected about you over the past 12 months, including:

(a) The categories of Personal Information we have collected about you;

(b) The categories of sources from which the Personal Information is collected;

(c) The business or commercial purpose for collecting your Personal Information;

(d) The categories of third parties with whom we have shared your Personal Information; and

(e) The specific pieces of Personal Information we have collected about you.

Right to Delete

You have the right to request that we delete the Personal Information we have collected from you. There are a number of exceptions, however, that include, but are not limited, to when the information is necessary for us or a third party to do any of the following:

(a) Complete your transaction;

(b) Provide you a good or service;

(c) Perform a contract between us and you;

(d) Protect your security and prosecute those responsible for breaching it;

(e) Fix our system in the case of a bug;

(f) Protect the free speech rights of you or other users;

(g) Comply with the California Electronic Communications Privacy Act (Cal. Penal Code § 1546 et seq.);

(h) Engage in public or peer-reviewed scientific, historical, or statistical research in the public interests that adheres to all other applicable ethics and privacy laws;

(i) Comply with a legal obligation; or

(j) Make other internal and lawful uses of the information that are compatible with the context in which you provided it.

Sale of Your Personal Information

We do not sell your Personal Information for money or other consideration of value.

More information about your rights as a California consumer may be found on California's Department of Justice website.

EnCap Does Not Discriminate

We will not discriminate against you for exercising your rights under the CCPA, including by denying service, suggesting that you will receive, or charging, different rates for services or suggesting that you will receive, or providing, a different level or quality of service to you.

How to Exercise Your Rights

To exercise any of your access or deletion request rights, please submit a verifiable consumer request to CFriou@encapinvestments.com or by calling our toll-free line, 1-833-659-6100.

We will contact you to confirm receipt of your request under the CCPA and request any additional information necessary to verify your request. We verify requests by matching information provided in connection with your request to information contained in our records. Depending on the sensitivity of the request and the varying levels of risk in responding to such requests (for example, the risk of responding to fraudulent or malicious requests), we may request your investor portal access credentials in order to verify your request. You may also designate an authorized agent to make a request under the CCPA on your behalf, *provided* that you provide a signed agreement verifying such authorized agent's authority to make requests on your behalf, and we may verify such authorized person's identity using the procedures above.

The verifiable consumer request must:

- Provide sufficient information that allows us to reasonably verify you are the person about whom we collected Personal Information or an authorized representative.

- Describe your request with sufficient detail that allows us to properly understand, evaluate, and respond to it.

We will not be able to respond to your request or provide you with specific pieces of Personal Information if we cannot verify your identity and authority to make the request.

Our goal is to respond to any verifiable consumer request within forty-five (45) days of our receipt of such request. We will inform you in writing if we cannot meet that timeline. Please contact EnCap at CFriou@encapinvestments.com with any questions about this Privacy Notice.

Third-Party Websites

Our Websites may contain links to other outside websites. Please be aware that we are not responsible for the content or privacy practices of such other websites. We encourage you to be read the privacy statements of any other website that collects information of visitors.

EEA PRIVACY NOTICE SUPPLEMENT

If you are a citizen or resident of the European Economic Area ("EEA"), then you may have certain additional rights under the General Data Protection Regulation ("GDPR").

Types of Personal Information

The types of Personal Information relating to you that we "process" (meaning, collect, use, and store) depends on your interaction with us. The key types of Personal Information that we process are set out below.

Types of Personal Information We Process	Our Legal Bases for Processing
Personal Identifiers, including: • first and last name • date of birth • social security number • gender • occupation • citizenship • marital status • birthplace • driver's license, passport number, or state identification card number(s) Contact Information including: • email address(es) • mailing address(es) • phone number(s)	Legitimate interests: • As necessary to provide you with EnCap's services • Getting to know you as a potential customer, investor, employee or business partner • Maintaining and managing our Websites • Responding to your communication(s) with us Contract • Fulfilling our obligations under any contract or engagement with you
Financial Information, including: • income level and/or assets • risk tolerance • transaction history • investment experience and activity, information regarding a potential and/or actual investment in a Fund (including ownership percentage, capital investment, income and losses, source of funds used to make an investment in a Fund) • salary information • sources of income and investment funds • criminal history	Legitimate interests: • As necessary to provide you with EnCap's services • Engaging with you as a potential or current customer or other business partner • Growing our business • Maintaining and managing our Websites • Responding to your communication(s) with us Consent

• details relating to immediate family members or senior political figures to whom you may be connected • investment experience or activity • your status under various laws and regulations, including tax status	• On the basis of the consent that you provide to us to process your Financial Information through the subscription agreement Contract • Fulfilling our obligations under any contract or engagement with you Legal obligation • Complying with legal and regulatory obligations (such as anti-money laundering checks and other disclosures to regulators)

Sharing and Transfers of Personal Information

In addition to disclosing Personal Information amongst themselves, the general partners or managing members of the Funds, EnCap Investments L.P., their affiliates and, in each case, their administrators, legal and other advisors and agents (the "Authorized Entities") may disclose Personal Information, where permitted by law, to other service providers, employees, agents, contractors, consultants, professional advisers, lenders, data processors and persons employed and/or retained by them in order to fulfill the purposes described in this Privacy Notice. In addition, any Authorized Entity may share Personal Information with regulatory bodies having competent jurisdiction over them, as well as with the tax authorities, auditors and tax advisers (where necessary or required by law).

Any Authorized Entity may transfer Personal Information to a Non-Equivalent Country (as defined below) in order to fulfill the purposes described in this Privacy Notice and in accordance with applicable law, including where such transfer is a matter of contractual necessity to enter into, perform and administer a subscription agreement and/or a Fund operating agreement, and to implement requested pre-contractual measures. For information on the safeguards applied to such transfers, please contact us. For the purposes of this Privacy Notice, "Non-Equivalent Country" shall mean a country or territory other than (i) a member state of the European Economic Area; or (ii) a country or territory which has at the relevant time been decided by the European Commission in accordance with the Data Protection Legislation to ensure an adequate level of protection for Personal Information.

Data Subject Rights

If your Personal Information has been collected in connection with our activities in the EEA, you have the following rights:

(a) To obtain information about, or the processing of your Personal Information;

(b) To access and receive a copy of your Personal Information;

(c) To request rectification of your Personal Information;

(d) To request erasure of your Personal Information;

(e) To exercise your right to data portability; and

(f) To be informed about certain automated decision-making.

You also have the right (where applicable) to withdraw any consent given in relation to, the processing of your Personal Information.

Please note that the right to erasure is not absolute and it may not always be possible to erase Personal Information on request, including where the Personal Information must be retained to comply with a legal obligation. In addition, erasure of the Personal Information requested to fulfill the purposes described in this Privacy Notice, may result in the inability to provide the services required pursuant to a subscription agreement and/or a Fund operating agreement.

If you disagree with the way in which your Personal Information is being processed in relation to a subscription agreement and/or a Fund, you have the right to object to this processing of Personal Information and request restriction of the processing to the extent such processing is not necessary to carry-out the agreement and is not tied to a legitimate interest.

You have the right to make a complaint at any time to the Information Commissioner's Office (ICO), the UK supervisory authority for data protection issues (www.ico.org.uk).

Our Retention Policies

Personal data may be kept for as long as it is required for legitimate business purposes, to perform contractual obligations, or where longer, such longer period as is required by applicable legal or regulatory obligations. Personal data will be retained throughout the life cycle of any investment in a Fund. Some personal data will be retained after you cease to be an investor in a Fund.

Contact Us

You may raise any request relating to the processing of your Personal Information with EnCap by contacting Craig Friou at CFriou@encapinvestments.com. You may also write to:

EnCap Investments
Attn: Craig Friou
9651 Katy Freeway, Suite 600
Houston, Texas 77024

CAYMAN ISLANDS PRIVACY NOTICE SUPPLEMENT

If your Personal Information has been collected in connection with our activities in the Cayman Islands, you may have additional rights under the Cayman Islands Data Protection Act (As Revised) (DPA).

Types of Personal Information

The types of Personal Information relating to you that we "process" (meaning, collect, use, and store) depends on your interaction with us. The key types of Personal Information that we process are set out below.

Types of Personal Information We Process	Our Legal Bases for Processing
Personal Identifiers, including: • first and last name • date of birth • social security number • gender • occupation • citizenship • marital status • birthplace • driver's license, passport number, or state identification card number(s) Contact Information including: • email address(es) • mailing address(es) • phone number(s)	Legitimate interests: • As necessary to provide you with EnCap's services • Getting to know you as a potential customer, investor, employee or business partner • Maintaining and managing our Websites • Responding to your communication(s) with us Contract • Fulfilling our obligations under any contract or engagement with you
Financial Information, including: • income level and/or assets • risk tolerance • transaction history • investment experience and activity, information regarding a potential and/or actual investment in a Fund (including ownership percentage, capital investment, income and losses, source of funds used to make an investment in a Fund) • salary information • sources of income and investment funds • criminal history	Legitimate interests: • As necessary to provide you with EnCap's services • Engaging with you as a potential or current customer or other business partner • Growing our business • Maintaining and managing our Websites • Responding to your communication(s) with us

• details relating to immediate family members or senior political figures to whom you may be connected • investment experience or activity • your status under various laws and regulations, including tax status	Consent • On the basis of the consent that you provide to us to process your Financial Information through the subscription agreement Contract • Fulfilling our obligations under any contract or engagement with you Legal obligation • Complying with legal and regulatory obligations (such as anti-money laundering checks and other disclosures to regulators)

Sharing and Transfers of Personal Information

In addition to disclosing Personal Information amongst themselves, the general partners or managing members of the Funds, EnCap Investments L.P., their affiliates and, in each case, their administrators, legal and other advisors and agents (the "Authorized Entities") may disclose Personal Information, where permitted by law, to other service providers, employees, agents, contractors, consultants, professional advisers, lenders, data processors and persons employed and/or retained by them in order to fulfill the purposes described in this Privacy Notice. In addition, any Authorized Entity may share Personal Information with regulatory bodies having competent jurisdiction over them, as well as with the tax authorities, auditors and tax advisers (where necessary or required by law).

Any Authorized Entity may transfer Personal Information to a Non-Equivalent Country (as defined below) in order to fulfill the purposes described in this Privacy Notice and in accordance with applicable law, including where such transfer is a matter of contractual necessity to enter into, perform and administer a subscription agreement and/or a Fund operating agreement, and to implement requested pre-contractual measures. For information on the safeguards applied to such transfers, please contact us. For the purposes of this Privacy Notice, "Non-Equivalent Country" shall mean a country or territory other than (i) a member state of the European Economic Area; (ii) a country or territory which has at the relevant time been decided by the European Commission in accordance with the relevant data protection legislation to ensure an adequate level of protection for Personal Information; or (iii) a country or territory which has at the relevant time been decided by the Office of the Ombudsman in accordance with the DPA to ensure an adequate level of protection for Personal Information;

Data Subject Rights

If your Personal Information has been collected in connection with our activities in the Cayman Islands, you have the following rights under the DPA:

(a) To obtain information about, or the processing of your Personal Information;

(b) To access and receive a copy of your Personal Information;

(c) To request rectification of your Personal Information;

(d) To request erasure of your Personal Information; and

(e) To be informed about certain automated decision-making.

You also have the right (where applicable) to withdraw any consent given in relation to, the processing of your Personal Information.

Please note that the right to erasure is not absolute and it may not always be possible to erase Personal Information on request, including where the Personal Information must be retained to comply with a legal obligation. In addition, erasure of the Personal Information requested to fulfill the purposes described in this Privacy Notice, may result in the inability to provide the services required pursuant to a subscription agreement and/or a Fund operating agreement.

If you disagree with the way in which your Personal Information is being processed in relation to a subscription agreement and/or a Fund, you have the right to object to this processing of Personal Information and request restriction of the processing to the extent such processing is not necessary to carry-out the agreement and is not tied to a legitimate interest.

You have the right to make a complaint at any time to the Office of the Ombudsman in the Cayman Islands, the supervisory authority for data protection issues (https://ombudsman.ky/)

Our Retention Policies

Personal data may be kept for as long as it is required for legitimate business purposes, to perform contractual obligations, or where longer, such longer period as is required by applicable legal or regulatory obligations. Personal data will be retained throughout the life cycle of any investment in a Fund. Some personal data will be retained after you cease to be an investor in a Fund.

Contact Us

You may raise any request relating to the processing of your Personal Information with EnCap by contacting Craig Friou at CFriou@encapinvestments.com. You may also write to:

EnCap Investments
Attn: Craig Friou
9651 Katy Freeway, Suite 600
Houston, Texas 77024

ANNEX O

CRS FORM

[To be separately provided to Purchasers who are subscribing for an Interest in Feeder C.]

ANNEX P

NON-U.S. PURCHASER SUPPLEMENT

[To be separately provided to Purchasers who are subscribing for an Interest in Feeder C.]